

PURITANISM AND
LIBERTY
1603-1660

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PURITANISM AND LIBERTY

(1603—1660)

COMPILED BY

KENNETH BELL, M.A.

FELLOW OF ALL SOULS COLLEGE, OXFORD

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INTRODUCTION

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The order of the extracts is strictly chronological, each being numbered, titled, and dated, and its authority given. The text is modernised, where necessary, to the extent of leaving no difficulties in reading.

We shall be most grateful to teachers and students who may send us suggestions for improvement.

S E. WINBOLT.
KENNETH BELL.

NOTE TO THIS VOLUME

(1603-1660)

I have to acknowledge, with thanks to Messrs. Longmans, Green and Co., leave to reprint the letter to Buckingham, given on [p. 25](#) of this book, from the edition of the Works of Francis Bacon (edited by Ellis Spedding and Heath); to Professor Firth and the Clarendon Press, Oxford, leave to reprint the passage from Ludlow's "Memoirs," given on [p. 80](#) of this book; and to Professor Firth, leave to reprint the passage from his edition of the "Clarke Papers," given on [pp. 81-84](#). These passages add very greatly to any value which the book may possess, and I am most grateful for permission to use them.

K. N. B.

HAMPSTEAD,
June, 1912.

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PURITANISM AND LIBERTY

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COKE AND RALEIGH (1603).

Source.—*State Trials*. Vol. ii., p. 25.

Serjeant Philips. I hope to make this so clear, as that the wit of man shall have no colour to answer it. The matter is Treason in the highest degree, the end to deprive the king of his crown. The particular Treasons are these: first to raise up Rebellion, and to effect that, to procure Money; to raise up Tumults in Scotland, by divulging a treasonable Book against the king's right to the crown; the purpose, to take away the life of his majesty and his issue. My lord Cobham confesseth sir Walter to be guilty of all these Treasons. The question is, whether he be guilty as joining with him, or instigating of him? The course to prove this, was by lord Cobham's Accusation. If that be true, he is guilty; if not, he is clear. So whether Cobham say true, or Raleigh, that is the question. Raleigh hath no answer but the shadow of as much wit, as the wit of man can devise. He useth his bare denial; the denial of a Defendant must not move the Jury. In the Star Chamber, or in the Chancery, for matter of Title, if the Defendant be called in question, his denial on his oath is no Evidence to the Court to clear him; he doth it in *propria causa*; therefore much less in matters of Treason. Cobham's testification against him before them, and since, hath been largely discoursed.

Raleigh. If truth be constant and constancy be in truth, why hath he forsworn that that he hath said? You have not proved any one thing against me by direct Proofs, but all by circumstances.

Coke (Attorney-General). Have you done? The king must have the last.

Raleigh. Nay, Mr. Attorney, he which speaketh for his life, must speak last. False repetitions and mistakings must not mar my cause. You should speak *secundum allegata et probata*. I appeal to God and the king in this point, whether Cobham's Accusation be sufficient to condemn me.

Coke. The king's safety and your clearing cannot agree. I protest before God, I never knew a clearer Treason.

Raleigh. I never had intelligence with Cobham since I came to the Tower.

Coke. Go to, I will lay thee upon thy back, for the confidentest Traitor that ever came at a bar. Why should you take 8,000 crowns for a peace?

Lord Cecil. Be not so impatient, good Mr. Attorney, give him leave to speak.

Coke. If I may not be patiently heard, you will encourage Traitors, and discourage us. I am the king's sworn servant, and must speak; If he be guilty, he is a Traitor; if not, deliver him.

[*Note.*—Here Mr. Attorney sat down in a chafe, and would speak no more, until the Commissioners urged and intreated him. After much ado, he went on, and made a long repetition of all the Evidence, for the direction of the Jury; and at the repeating of some things, sir Walter Raleigh interrupted him, and said, he did him wrong.]

Coke. Thou art the most vile and execrable Traitor that ever lived.

Raleigh. You speak indiscreetly, barbarously and uncivilly.

Coke. I want words sufficient to express thy viperous Treasons.

Raleigh. I think you want words indeed, for you have spoken one thing half a dozen times.

Coke. Thou art an odious fellow, thy name is hateful to all the realm of England for thy pride.

Raleigh. It will go near to prove a measuring cast between you and me, Mr. Attorney.

Coke. Well, I will now make it appear to the world, that there never lived a viler viper upon the face of the earth than thou....

JAMES AT HAMPTON COURT (1603).

Source.—*State Trials*. Vol. ii., p. 85.

Dr. Reynolds. I desire, that according to certain provincial constitutions, the clergy may have meetings every three weeks.—1. First in Rural Deaneries, therein to have prophesying, as archbishop Grindall, and other bishops, desired of her late majesty.—2. That such things as could not be resolved on there, might be referred to the archdeacons' visitations.—3. And so to the Episcopal Synod, to determine such points before not decided.

His Majesty. If you aim at a Scottish Presbytery, it agreeth as well with monarchy, as God and the devil. Then Jack, and Tom, and Will, and Dick, shall meet and censure me and my council. Therefore I reiterate my former speech, *Le Roy s'avisera*; Stay, I pray, for one seven years, before you demand, and then if you find me grow pury and fat, I may, perchance, hearken unto you, for that government will keep me in breath, and give me work enough. I shall speak of one matter more, somewhat out of order, but it skilleth not; Dr. Reynolds, you have often spoken for my Supremacy, and it is well: but know you any here, or elsewhere, who like of the present government ecclesiastical, and dislike my Supremacy?

Dr. Reyn. I know none.

His Maj. Why then I will tell you a tale: after that the religion restored by king Edward the sixth, was soon overthrown by queen Mary here in England, we in Scotland felt the effect of it. For thereupon Mr. Knox writes to the queen regent (a virtuous and moderate lady) telling her that she was the supreme head of the Church; and charged her, as she would answer it at God's tribunal, to take care of Christ his Evangil, in suppressing the Popish prelates, who withstood the same; but how long trow you did this continue? Even till by her authority the Popish bishops were repressed, and Knox with his adherents, being brought in, made strong enough. Then began they to make small account of her supremacy, when, according to that more light, wherewith they were illuminated, they made a further reformation of themselves. How they used the poor lady my mother, is not unknown, and how they dealt with me in my minority. I thus apply it. My lords, the bishops, I may [This he said putting his hand to his hat] thank you that these men plead thus for my Supremacy. They think they cannot make their good

against you, but by appealing unto it; but if once you were out, and they in, I know what would become of my Supremacy, for *No Bishop, No King*. I have learned of what cut they have been, who, preaching before me, since my coming into England, passed over, with silence, my being Supreme Governor in causes ecclesiastical. Well, doctor, have you anything else to say?

Dr. Reyn. No more, if it please your majesty.

His Maj. If this be all your party hath to say, I will make them conform themselves, or else I will harrie them out of the land, or else do worse.

Thus ended the second day's Conference.

JAMES I. ON MONARCHY.

Source.—Somers, *Tracts*. Vol. iii., p. 260.

The state of monarchy is the supremest thing upon earth; for kings are not only God's lieutenants upon earth, and sit upon God's throne, but even by God himself they are called gods. There be three principal similitudes that illustrate the state of monarchy: one taken out of the word of God; and the two other out of the grounds of policy and philosophy. In the scriptures, kings are called gods; and so their power, after a certain relation, compared to the divine power. Kings are also compared to fathers of families: for a king is truly *parens patriæ*, the politique father of his people. And, lastly, kings are compared to the head of this microcosm of the body of man.

Kings are justly called gods; for that they exercise a manner or resemblance of divine power upon earth. For, if you will consider the attributes of God, you shall see how they agree in the person of a king. God hath power to create or destroy, make or unmake, at his pleasure; to give life or send death, to judge all, and not to be judged nor accountable to none; to raise low things, and to make high things low at his pleasure, and to God are both soul and body due. And the like power have kings: they make and unmake their subjects; they have power of raising and casting down; of life and of death; judges over all their subjects, and in all causes, and yet accountable to none but God only. They have power to exalt low things, and abase high things and make of their subjects like men at the chess; a pawn to take a bishop or a knight, and to cry up or down any of their subjects, as they do their money. And to the king is due both the affection of the soul and the service of the body of his subjects.

THE VENETIAN AMBASSADOR ON GUNPOWDER PLOT (1605).

Source.—*State Papers: Venetian, 1603-1607.* No. 442.

Niccolo Molin, Ambassador in England, to the Doge and Senate.

The King came to London on Thursday evening, the 10th of this month, and made all preparations for opening Parliament on Tuesday, the 15th. This would have taken place had not a most grave and important event upset the arrangement. About six months ago a gentleman, named Thomas Percy, relation of the Earl of Northumberland and pensioner of the King, hired, by means of a trusty servant, some wine cellars under the place where Parliament meets, and stored in them some barrels of beer, the usual drink of this country, as well as wood and coal. He said he meant to open a tavern for the use of servants who attended their masters to Parliament. But among this beer, wood, and coals he introduced thirty-three barrels of gunpowder, besides four tuns, the size of Cretan hogsheads, intending to make use of it at the right moment. About two months ago Lord Salisbury received anonymous letters from France, warning him to be on his guard, for a great conspiracy was being hatched by priests and Jesuits; but, as similar information had been sent about a year ago by the English lieger in France, no great attention was paid to these letters, and they were attributed to the empty-headed vanity of persons who wished to seem more conversant with affairs than became them. Finally, on Monday last, a letter was brought by an unknown person, for it was dark, about two o'clock of the night, to a servant of Lord Monteagle, who was standing at the door. The unknown said, "Please give this to your master: and tell him to reply at once, as I will come back in half an hour for the answer to carry to my master." The servant took the letter, and went upstairs and gave it to his master, who opened it and found it was anonymous, nor did he recognize the hand. The substance of the letter was this, that the writer, in return for the favours received at various times from Lord Monteagle, had resolved to warn him by letter that he should on no account attend Parliament the following morning, as he valued his life, for the good party in England had resolved to execute the will of God, which was to punish the King ... and the Ministers for their bitter persecution employed against the poor [Catholics] ... in such brief space ... he could burn the letter, which he earnestly begged him to do. Lord Monteagle read the letter, and in great astonishment took it to the Earl

of Salisbury, who at once carried it to the King, and under various pretexts ordered a search of all the neighbouring houses to see if arms or anything of that sort, which might furnish a clue, were hidden there. Meantime the King read the letter, and in terrified amaze he said, "I remember that my father died by gunpowder. I see the letter says the blow is to be struck on a sudden. Search the basements of the meeting-place." The Chamberlain, with three or four attendants, went straightway to carry out this order. First he inquired who had hired the basements; then he caused the door to be opened and went in. He saw nothing but beer barrels, faggots and coal. Meantime, those who had searched the neighbouring houses came back and reported that they had found nothing of any importance, and when the Chamberlain returned and reported that he, too, had seen nothing but the barrels, faggots and coal this increased the alarm and suspicions of the King, who said, "I don't like these faggots and coal. Go back and shift all the wood and all the coal and see what is underneath, and use all diligence to come to certainty in the matter." The Chamberlain went back, and after shifting the wood he found underneath some barrels of powder, and after shifting the coal he found more barrels. In confusion he returned to the King and told him; and orders were at once given to a certain knight to take a company with him and to set sentinels in various posts to watch who approached the door of the cellars. About two in the morning they saw a man approaching with a dark lantern, but not so well closed as to hide the light completely. The guards cunningly drew back and left him free passage to the cellars, the door of which had been securely fastened as it was at first. The man went in, laid a train of powder and fitted a slow match; the powder and the tinder reached the powder barrels. His intention was to fire the train in the morning. When he had finished his business, as he was coming out, he was surprised by the guard, who asked what [he was doing] at that hour at that place. [He replied] that he had come there, as he had a fancy to see his property. They saw a bag in his hand, and found in it little bits of slow match, and when they turned on the light they saw the train of powder. Thereupon they bound him and took him to the Palace, where some of the Council were awake, waiting the issue of this affair. The man was brought into their presence, and at once confessed that he was servant to Thomas Percy, who had left the evening before, he knew not where for, and was quite ignorant of these facts. He further confessed that it was his firm resolve to have set fire to the mine that morning while the King, Queen,

Princes, Clergy, Nobility, and Judges were met in Parliament, and thus to purge the kingdom of perfidious heresies. His only regret was that the discovery of the plot had frustrated its due execution, though it was certain that God would not for long endure such injustice and iniquity. The rest in my next despatch.

ARGUMENTS IN BATES' CASE (1606).

ARGUMENT OF CHIEF BARON FLEMING.

Source.—*State Trials*. Vol. ii., p. 389.

To the king is committed the government of the realm and his people; and Bracton saith, that for his discharge of his office, God had given to him power, the act of government, and the power to govern. The king's power is double, ordinary and absolute, and they have several laws and ends. That of the ordinary is for the profit of particular subjects, for the execution of civil justice, the determining of *meum*; and this is exercised by equity and justice in ordinary courts, and by the civilians is nominated *jus privatum* and with us, common law: and these laws cannot be changed, without parliament; and although that their form and course may be changed, and interrupted, yet they can never be changed in substance. The absolute power of the king is not that which is converted or executed to private use, to the benefit of any particular person, but is only that which is applied to the general benefit of the people, and is *salus populi*; as the people is the body, and the king the head; and this power is guided by the rules, which direct only at the common law, and is most properly named Policy and Government; and as the constitution of this body varieth with the time, so varieth this absolute law, according to the wisdom of the king, for the common good; and these being general rules and true as they are, all things done within these rules are lawful. The matter in question is material matter of state, and ought to be ruled by the rules of policy; and if it be so, the king hath done well to execute his extraordinary power. All customs, be they old or new, are no other but the effects and issues of trades and commerce with foreign nations; but all commerce and affairs with foreigners, all wars and peace, all acceptance and admitting for current foreign coin, all parties and treaties whatsoever, are made by the absolute power of the king; and he who hath power of causes, hath power also of effects. No exportation or importation can be, but at the king's ports. They are the gates of the king, and he hath absolute power by them to include or exclude whom he shall please; and ports to merchants are their harbours, and repose; and for their better security he is compelled to provide bulwarks and fortresses, and to maintain, for the collection of his customs and duties, collectors and customers; and for that charge it is reason, that he should have this benefit.

He is also to defend the merchants from pirates at sea in their passage. Also, by the power of the king they are to be relieved, if they are oppressed by foreign princes, for they shall have his treaty, and embassy; and if he be not remedied thereby, then *lex talionis* shall be executed, goods for goods, and tax for tax; and if this will not redress the matter, then war is to be attempted for the cause of merchants. In all the king's courts, and of other princes, the judges in them are paid by the king, and maintained by him to do justice to the subjects, and therefore he hath the profits of the said courts. It is reasonable that the king should have as much power over foreigners and their goods, as over his own subjects; and if the king cannot impose upon foreign commodities a custom, as well as foreigners may upon their own commodities, and upon the commodities of this land when they come to them, then foreign states shall be enriched and the king impoverished, and he shall not have equal profit with them; and yet it will not be denied, but his power herein is equal with other states.

MR. YELVERTON'S ARGUMENT.

Source.—*State Trials*. Vol. ii., p. 482.

For the first, it will be admitted for a rule and ground of state, that in every commonwealth and government there be some rights of sovereignty, *jura majestatis*, which regularly and of common right do belong to the sovereign power of that state; unless custom, or the provisional ordinance of that state, do otherwise dispose of them: which sovereign power is *potestas suprema* a power that can control all other powers, and cannot be controlled but of itself. It will not be denied, that the power of imposing hath so great a trust in it, by reason of the mischiefs may grow to the common-wealth by the abuses of it, that it hath ever been ranked among those rights of sovereign power. Then is there no further question to be made, but to examine where the sovereign power is in this kingdom; for there is the right of imposition. The sovereign power is agreed to be in the king: but in the king is a twofold power; the one is parliament, as he is assisted with the consent of the whole state; the other out of parliament, as he is sole, and singular, guided merely by his own will. And if of these two powers in the king one is greater than the other, and can direct and control the other; that is *suprema potestas*, the sovereign power, and the other is *subordinata*. It will then be easily proved, that the power of the king in parliament is greater than his power out of parliament; and doth rule and

control it; for if the king make a grant by his letters patents out of parliament, it bindeth him and his successors: he cannot revoke it, nor any of his successors; but by his power in parliament he may defeat and avoid it; and therefore that is the greater power.

THE ULSTER PLANTATION (1609).

Source.—*State Papers; Ireland, 1608-1610.* No. 455.

Lords of the Council to Sir Arthur Chichester.

The City of London being willing to undertake such a part as might befit them in the project of the Plantation of Ulster, and to be a means to reduce that savage and rebellious people to civility, peace, religion, and obedience, and having commissioned the bearers John Brode Goldsmill, John Monroes, Robert Treswell, painter, and John Rowley, draper, to view of the country, and make report on their return, Sir Arthur Chichester is to direct a supply of all necessaries in their travel into those countries, and to aid them in every way. And they (the Lords) have directed Sir Thomas Philips to accompany them, whose knowledge and residence in those parts and good affection to the cause in general, they assure themselves will be of great use at this time; seeing there is no man that intendeth any plantation or habitation in Ulster that ought not to be most desirous of such neighbours as will bring trade and traffic into the ports.

RELIGION IN RURAL ENGLAND (circa 1615).

Source.—*The Life of the Rev. Mr. Richard Baxter.* Ed. M. Sylvester, 1790. Pp. 1, 2.

Eaton Constantine, near Wrekin Hill.

We lived in a country that had but little preaching at all. In the village where I was born there were four readers successively in six years' time, ignorant men and two of them immoral in their lives, who were all my schoolmasters. In the village where my father lived, there was a reader of about eighty years of age that never preached and had two churches about twenty miles distant; his eyesight failing him he said Common prayer without book, but for the reading of the psalms and chapters he got a common thresher and day labourer one year, and a tailor another year (for the Clerk could not read well). And at last he had a kinsman of his own (the excellentest stage player in all the country and a good gamester and good fellow) that got orders and supplied one of his places. After him, another younger kinsman that could write and read got orders. And at the same time another neighbour's son that had been a while at school turned minister, and who would needs go further than the rest, ventured to preach (and after got a living in Staffordshire), and when he had been a preacher about twelve or sixteen years, he was fain to give over, it being discovered that his orders were forged by the first ingenious stage player. And after him another neighbour's son took orders, when he had been a while an attorney's clerk and a common drunkard and tiddled himself into so great poverty that he had no other way to live. These were the schoolmasters of my youth (except two of them) who read Common prayer on Sundays and holidays and taught school and tiddled on the weekdays and whipped the boys when they were drunk, so that we changed them very often....

In the village where I lived the reader read the Common prayer briefly, and the rest of the day even till dark night almost, excepting eating time, was spent in dancing under a maypole and a great tree, not far from my father's door, where all the town did meet together. And though one of my father's own tenants was the piper, he could not restrain him nor break the sport, so that we could not read the Scriptures in our family without the great disturbance of the tabor and pipe and noise in the street. Many times my mind was inclined to be among them and sometimes I broke loose from conscience and joined with them, and the more I did it the more I was

inclined to it. But when I heard them call my father Puritan, it did much to cure me and alienate me from them, for I considered that my father's exercise of reading the Scriptures was better than theirs and would surely be better thought on by all men at the last. When I heard them speak scornfully of others as Puritans whom I never knew, I was at first apt to believe all the lies and slanders wherewith they loaded them. But when I heard my own Father so reproached and perceived the drunkards were the forwardest in the reproach, I perceived that it was mere malice. For my Father never scrupled Common prayer or Ceremonies, nor spake against Bishops, nor ever so much as prayed but by a book or form, being not ever acquainted then with any that did otherwise. But only for reading Scriptures when the rest were dancing on the Lord's Day, and for praying (by a form out of the end of the Common prayer Book) in his house, and for reproving drunkards and swearers, and for talking sometimes a few words of Scripture and the Life to come, he was reviled commonly by the name of Puritan, Precisian, and Hypocrite, and so were the godly conformable ministers that lived anywhere in the country near us, not only by our neighbours, but by the common talk of the vulgar rabble of all about us. By this experience I was fully convinced that Godly People were the best, those that despised them and lived in sin and pleasure were a malignant unhappy sort of people; and this kept me out of their Company, except now and then when the love of sports and play enticed me.

THE DECLARATION OF SPORTS (1618).

Source.—*Harleian Miscellany*. Vol. v., p. 75.

Whereas, upon our return the last year out of Scotland, we did publish our pleasure, touching the recreations of our people in those parts, under our hand; for some causes us thereunto moving, we have thought good to command these our directions, then given in Lancashire (with a few words thereunto added, and most applicable to these parts of our realms), to be published to all our subjects.

Whereas we did justly, in our progress through Lancashire, rebuke some Puritans and precise people, and took order, that the like unlawful carriage should not be used by any of them hereafter, in the prohibiting and unlawful punishing of our good people, for using their lawful recreations and honest exercises, upon Sundays and other holidays, after the afternoon sermon or service: we now find, that two sorts of people, wherewith that country is much infected (we mean Papists and Puritans) have maliciously traduced and calumniated those our just and honourable proceedings: and therefore, lest our reputation might, upon the one side (though innocently), have some aspersion laid upon it; and upon the other part, our good people in that country be misled, by the mistaking and misinterpretation of our meaning; we have therefore thought good, hereby to clear and make our pleasure to be manifested to all our good people in those parts.

It is true, that at our first entry to this crown and kingdom, we were informed (and that too truly) that our county of Lancashire abounded more in popish recusants, than any county of England, and thus hath still continued since, to our great regret, with little amendment; save that now of late, in our last riding through our said country, we find, both by the report of the judges, and of the bishops of that diocese, that there is some amendment now daily beginning; which is no small contentment to us.

The report of this growing amendment amongst them made us the more sorry, when, with our own ears, we heard the general complaint of our people, "That they were barred from all lawful recreation and exercise upon the Sunday's afternoon, after the ending of all divine service"; which cannot but produce two evils: the one, the hindering of the conversion of many, whom their priests will take occasion hereby to vex; persuading them, that

no honest mirth or recreation is lawful, or tolerable, in our religion; which cannot but breed a great discontentment in our people's hearts, especially of such as are, peradventure, upon the point of turning. The other inconvenience is, that this prohibition barreth the common and meaner sort of people from using such exercises, as may make them bodies more able for war, when we, or our successors shall have occasion to use them; and, in place thereof, sets up filthy tipplings and drunkenness, and breeds a number of idle and discontented speeches in their alehouses: for when shall the common people have leave to exercise, if not upon the Sundays and holidays? Seeing they must apply their labour, and win their living in all working-days.

Our express pleasure therefore is, that the laws of our kingdom, and canons of our church, be as well observed in that county, as in all other places of this our kingdom; and, on the other part, that no lawful recreation shall be barred to our good people, which shall not tend to the breach of our aforesaid laws, and canons of our church: which to express more particularly, our pleasure is, that the bishops, and all other inferior churchmen, and churchwardens shall, for their parts, be careful and diligent, both to instruct the ignorant, and convince and reform them that are misled in religion; presenting them that will not conform themselves, but obstinately stand out, to our judges and justices; whom we likewise command to put the law in due execution against them.

Our pleasure likewise is, that the bishop of that diocese take the like strait order with all the Puritans and Precisians within the same; either constraining them to conform themselves, or to leave the county, according to the laws of our kingdom, and canons of our church; and so to strike equally, on both hands, against the contemners of our authority, and adversaries of our church. And as for our good people's lawful recreation, our pleasure likewise is, that after the end of divine service, our good people be not disturbed, letted, or discouraged, from any lawful recreation, such as dancing, either men or women; archery for men, leaping, vaulting, or any such harmless recreation; nor from having of May-games, Whitson-ales, and Morrice-dances; and the setting up of May-poles, and other sports therewith used, so as the same be had in due and convenient time, without impediment or neglect of divine service; and that women shall have leave to carry rushes to the church, for the decoring of it, according to their old

custom. But, withal, we do here account still as prohibited, all unlawful games to be used upon Sundays only; as bear and bull baitings, interludes, and, at all times, (in the meaner sort of people by law prohibited) bowling.

And likewise we bar, from this benefit and liberty, all such known Recusants, either men or women, as will abstain from coming to church or divine service; being therefore unworthy of any lawful recreation after the said service, that will not first come to the church and serve God: prohibiting, in like sort, the said recreations to any that, though conform in religion, are not present in the church, at the service of God, before their going to the said recreations. Our pleasure likewise is, that they to whom it belongeth in office, shall present, and sharply punish all such as, in abuse of this our liberty, will use these exercises before the ends of all divine services, for that day. And we likewise straitly command, that every person shall resort to his own parish-church to hear divine service, and each parish by itself to use the said recreation after divine service; prohibiting likewise any offensive weapons to be carried, or used in the said times of recreations.

THE POSITION OF THE JUDGES.

Source.—Bacon's *Essay of Judicature*.

Fourthly, for that which may concern the sovereign and estate. Judges ought above all to remember the conclusion of the Twelve Tables, "Salus populi suprema lex"; and to know that laws, except they be in order to that end, are but things captious, and oracles not well inspired. Therefore it is a happy thing in a state when kings and states do often consult with judges; and again when judges do often consult with the king and state; the one, when there is matter of law intervment in business of state; the other, when there is some consideration of state intervment in matter of law. For many times the things deduced to judgment may be *meum* and *tuum*, when the reason and consequence thereof may trench to point of estate: I call matter of estate, not only the parts of sovereignty, but whatsoever introduceth any great alteration or dangerous precedent; or concerneth manifestly any great portion of people. And let no man weakly conceive that just laws and true policy have any antipathy; for they are like the spirits and sinews, that one moves with the other. Let judges also remember, that Solomon's throne was supported by lions on both sides: let them be lions, but yet lions under the throne; being circumspect that they do not check or oppose any points of sovereignty. Let not judges also be so ignorant of their own right, as to think there is not left to them, as a principal part of their office, a wise use and application of laws. For they may remember what the Apostle said of a greater law than theirs, "nos scimus quia lex bona est, modo quis ea utatur legitime."

THE VOYAGE OF THE "MAYFLOWER" (1620).

Source.—Bradford, *History of Plymouth Plantation*. Chapter IX.

These troubles being blown over, and now all being compact together in one ship, they put to sea again with a prosperous wind, which continued diverse days together, which was some encouragement unto them: yet according to the usual manner, many were afflicted with sea sickness. And I may not omit here a special work of God's Providence. There was a proud and very profane young man, one of the seamen, of a lusty, able body, which made him the more haughty; he would always be contemning the poor people in their sickness, and cursing them daily with grievous execrations, and did not let to tell them that he hoped to help to cast half of them overboard, before they came to their journey's end, and to make merry with what they had; and if he were by any gently reprov'd, he would curse and swear most bitterly. But it pleased God before they came half seas over, to smite this young man with a grievous disease, of which he died in a desperate manner, and so was himself the first that was thrown overboard. Thus his curses light on his own head; and it was an astonishment to all his fellows, for they noted it to be the just hand of God upon him.

After they had enjoyed fair winds and weather for a season, they were encountered many times with cross winds, and met with many fierce storms, with which the ship was shrewdly shaken and her upper parts made very leaky. And one of the main beams in the midships was bowed and cracked, which put them in some fear that the ship could not be able to perform the voyage. So some of the chief of the company, perceiving the mariners to fear the sufficiency of the ship, as appeared by their mutterings, entered into serious consultation with the master and other officers of the ship, to consider in time of the danger; and rather to return than to cast themselves into a desperate and inevitable peril. And truly there was great distraction and difference of opinion among the mariners themselves; fain would they do what could be done for their wages' sake (being now half the seas over,) and on the other hand they were loath to hazard their lives too desperately. But in examining of all opinions, the master and others affirmed they knew the ship to be strong and firm under water; and for the buckling of the main beam, there was a great iron screw the passengers brought out of Holland, which would raise the beam into his place; the

which being done, the carpenter and master affirmed that with a post put under it, set firm in the lower deck, and otherways bound, he would make it sufficient. And as for the decks and upper works, they would caulk them as well as they could, and though with the working of the ship they would not long keep staunch, yet there would otherwise be no great danger, if they did not overpress her with sails. So they committed themselves to the will of God and resolved to proceed. In sundry of these storms the winds were so fierce and the seas so high as they could not bear a knot of sail, but were forced to drift for diverse days together. And in one of them as they thus lay at drift in a mighty storm, a lusty young man (called John Howland,) coming upon some occasion above the gratings, was, with a roll of the ship, thrown into the sea, but it pleased God that he caught hold of the topsail halyards, which hung overboard and ran out at length; yet he held his hold (though he was sundry fathoms under water) till he was hauled up by the same rope to the brim of the water, and then with a boat-hook and other means got into the ship again, and his life saved; and though he was something ill with it, yet he lived many years after; and became a profitable member both in church and commonwealth. In all this voyage there died but one of the passengers, which was William Butten, a youth, servant to Samuel Fuller, when they drew near the coast. But to omit other things (that I may be brief,) after long beating at sea they fell in with that land which is called Cape Cod; the which being made and certainly known to be it, they were not a little joyful. After some deliberation had among themselves and with the master of the ship, they tacked about and resolved to stand for the southward (the wind and weather being fair) to find some place about Hudson's river for their habitation. But after they had sailed that course about half a day, they fell among dangerous shoals and roaring breakers, and they were so far entangled therewith as they conceived themselves in great danger: and the wind shrinking upon them withal, they resolved to bear up again for the Cape, and thought themselves happy to get out of those dangers before night overtook them, as by God's providence they did. And the next day they got into the Cape Harbour, where they rode in safety.

Being thus arrived in a good harbour and brought safe to land, they fell upon their knees and blessed the God of heaven, who had brought them over the vast and furious ocean, and delivered them from all the perils and miseries thereof, again to set their feet on the firm and stable earth, their proper element.

UNEMPLOYMENT (1621).

Source.—*Diary of Walter Yonge, Esq.* Camden Society's Publications. P. 52.

About this time there were assembled about 400 poor people in Wiltshire complaining in peaceable manner to the justices that they could get no work to relieve themselves, and therefore did desire that order might be taken for their relief: all trades are grown so bad that there is not any employment. It is said also that the like insurrection was in Gloucestershire, and thereupon the Lords of the Council sent forth letters into divers shires for the setting of poor people on work.

It is said that merchants are enjoined to buy a quantity of clothes weekly at Blackwel Hall in London, or otherwise they shall be disfranchised of their liberties and freedom of merchants in London.

THE PROTESTATION OF THE COMMONS (1621).

Source.—Rushworth, *Historical Collections*. Vol. i., p. 53.

The Commons now assembled in Parliament, being justly occasioned thereunto, concerning sundry Liberties, Franchises, and Privileges of Parliament, amongst others here mentioned, do make this Protestation following: That the Liberties, Franchises, Privileges, and Jurisdictions of Parliament are the ancient and undoubted Birthright and Inheritance of the subjects of England; and that the arduous and urgent affairs concerning the King, State and Defence of the Realm, and of the Church of England, and the maintenance and making of Laws, and redress of mischiefs and grievances which daily happen within this Realm, are proper subjects and matter of Counsel and Debate in Parliament; and that in the handling and proceeding of those businesses, every Member of the House of Parliament hath, and of right ought to have, freedom of speech to propound, treat, reason, and bring to conclusion the same. And that the Commons in Parliament have like liberty and freedom to treat of these matters in such order as in their judgments shall seem fittest. And that every member of the said House hath like freedom from all Impeachment, Imprisonment, and Molestation (otherwise than by Censure of the House itself) for or concerning any speaking, reasoning, or declaring of matters touching the Parliament, or Parliament-business. And that if any of the said members be complained of and questioned for anything done or said in Parliament, the same is to be showed to the King by the advice and assent of all the commons assembled in Parliament, before the King give credence to any private information.

His Majesty did this present day in full assembly of his Council and in the presence of the Judges, declare the said Protestation to be invalid, annulled, void, and of no effect. And did further manu sua propria take the said Protestation out of the Journal Book of the Clerk of the Commons House of Parliament.

THE LORD TREASURER'S DIFFICULTIES (1621).

Source.—Goodman, *The Court of King James I.* Vol. ii., p. 207. London: Richard Bentley, 1839.

L. Cranfield to the Duke of Buckingham.

RIGHT NOBLE AND MY MOST HONOURED LORD,

This bearer, Sir William Russell, hath lately done his Majesty good service by lending money towards the discharge of the ships that come from Argier, whereof I pray your Lordship to take notice and to thank him.

The more I look into the King's estate, the greater cause I have to be troubled, considering the work I have to do, which is not to reform one particular, as in the household, navy, wardrobe, etc.; but every particular, as well of his Majesty's receipts as payments, hath been carried with so much disadvantage to the King, as until your Lordship see it you will not believe any men should be so careless and unfaithful.

I have heard his Majesty is now granting a pension. I pray your Lordship to consider how impossible it is for me to do service if any such thing be done, and withal whether it were not unjust to stop pensions already granted, and at the same instant to grant new, and what a life I should have with those whose pensions are stayed, for whom I have now a good answer: viz., the King must and shall be first served. I pray your lordship not only to stay the granting any new, but to move his Majesty not to suffer any old to be exchanged or altered from one life to another; and then, I dare assure your Lordship, within these few months they will not be worth two years' purchase.

I shall not desire to live if I do not the work; and therefore, good my Lord, be constant yourself, and be the happy means to hold the King so. It is my gratitude to his Majesty and your lordship that hath engaged me: otherwise there is nothing upon this earth could have tempted me to have quit the happy estate I was in within these fourteen days, to enter into a business so full of continual vexation and trouble.

I have called some men to account who have not accounted these seven years. I doubt some will make their addresses to his Majesty or your lordship; I pray let their answer be, his Majesty hath referred the trust of ordering his estate to me.

I shall shortly call for an account out of the Isle of Wight. I think out of moneys owing by some rich lords to pay some of his Majesty's poor servants. I will spare no person, nor forbear any course that is just and honourable to make our great and gracious master to subsist of his own. The pains and envy shall be mine: the honour and thanks your lordship's. Wherefore be constant to him that loves and honours you, and will ever rest,

Your lordship's faithful servant and kinsman,

LIONEL CRANFIELD.

CHELSEA,
12th Oct., 1621.

PROCLAMATION FOR RELIEF OF THE POOR (1622).

Source.—Rymer, *Fædera*. Vol. xvii., p. 428.

The King's most Excellent Majesty, having taken knowledge of the present scarcity and dearth, of the high prices of corn and grain throughout all parts of this kingdom, hath been pleased, by his Proclamation lately published, to restrain the residence of the Lords Spiritual and Temporal and of the Knights and Gentlemen of quality, in and near the cities of London and Westminster and other cities and towns, to return them unto their own houses and habitations in their several countries, that all parts of the kingdom might find the fruits and feel the comfort of their hospitality and good government, wherein as his Majesty is well pleased with the dutiful obedience of great numbers, that according to his royal command have left the cities of London and Westminster and the parts adjacent, so his Highness hath great cause to condemn the obstinacy of all such as, in a time of such general conformity, and against so many good Examples shall show themselves refractory to that his royal pleasure grounded upon important reasons of justice and state, and therefore his Majesty doth eftsoones admonish them speedily to submit themselves to that his Royal Proclamation, or else to expect the severity of his justice for their wilful contempt, and this his Majesty declares to be extended, as well unto such as have repaired or shall repair from their ordinary dwellings in the country unto their cities and towns, as unto the cities of London and Westminster, and as well unto widows as men of quality and estate, and to be continued not only during the time of Christmas now instant, but in that and all other times and seasons of this and other years until his Majesty declare his pleasure otherwise; his Majesty intending to continue this course hereafter for the general good of his people, yet allowing that liberty which always hath been in terms and otherwise to repair to London about their necessary occasions, but not to remove their wives and families from their ordinary habitations in the country, an innovation and abuse lately crept in and grown frequent.

And although his Majesty is persuaded that by this way of reviving the laudable and ancient housekeeping of this realm, the poor and such as are most pinched in times of scarcity and want, will be much relieved and comforted, yet that nothing may be omitted that may tend to their succour

and help, his Highness in his gracious and princely care and providence, hath caused certain politic and good orders heretofore made upon like occasions to be reviewed and published; intituled, *Orders appointed by his Majesty, &c.* By which the Justices of Peace in all Parts of the Realm are directed to stay all ingrossers forestallers and regrators of corn, and to direct all owners and farmers, having corn to spare, to furnish the Markets rateably and weekly with such quantities as reasonably they may and ought to do, and some one or more of them to be present in the Market according to the orders, and to see divers other Articles observed and performed tending to the prevention and remedy of this inconvenience....

A PROCLAMATION FOR RESTRAINT OF EXPORTATION, WASTE AND
CONSUMPTION OF COIN AND BULLION (1622).

Source.—Rymer, *Fædera*. Vol. xvii., p. 376.

The King's most Excellent Majesty considering the scarcity of money and coin of late years grown within the realm, occasioned partly by transportation thereof out of this kingdom, and partly by the unlawful consumption thereof within the land, whereof many unsufferable inconveniences do daily arise, and more are like to ensue to the general hurt and damage of the whole Commonweal, if some timely and good Statutes made in the time of his most noble progenitors and predecessors kings of this realm, as also the several Proclamations published by his own royal authority since the beginning of his most happy reign, notwithstanding all of which, and some remarkable Examples of Justice in his High Court of Star Chamber against some principal offenders in this kind, many covetous and greedy persons have and daily do with great boldness and contempt continue and proceed in those unlawful and offensive courses, tending to the exhausting of the treasure of the realm, and utter overthrow of trade and commerce within the same.

And therefore his Majesty in his princely wisdom and upon necessity of state, sees it fit that from henceforth all care and diligence in the discovery and all severity in the correction and punishment of such delinquents without favour to any shall be used; and to the end that all men may take notice hereof, his Majesty thinketh fit to publish this his Proclamation, to the end that no man upon hope of impunity presume hereafter to transgress his Majesty's laws or this his royal commandment in that behalf; hereby straitly charging and commanding that no person or persons alien, denizen, or other subject of what estate quality or condition soever, do at any time hereafter, without his Majesty's licence, transport carry or convey, or attempt or endeavour to transport carry or convey out of this realm any gold or silver, either in coin, plate, vessels, jewels, goldsmiths' work, bullion or other mass, or otherwise howsoever, upon pain of his Majesty's heavy indignation and displeasure, and of the severest censure of his High Court of Star Chamber, and such further pains punishments and imprisonments as by the laws and statutes of this realm may be inflicted upon them for such their offence....

BACON TO BUCKINGHAM (1623).

Source.—*Works of Francis Bacon*. Spedding, Ellis, and Heath. Vol. xiv., p. 423. London: Longmans, 1874.

To the Marquis of Buckingham.

EXCELLENT LORD,

Though I have troubled your Lordship with many letters, oftener than I think I should (save that affection keepeth no account,) yet upon the repair of Mr. Matthew, a gentleman so much your Lordship's servant, and to me another myself, as your Lordship best knoweth, you would not have thought me a man alive, except I had put a letter into his hand, and withal by so faithful and approved a mean commended my fortunes afresh unto your Lordship.

My Lord, to speak my heart to your Lordship, I never felt my misfortunes so much as now, not for that part which may concern myself, who profit (I thank God for it) both in patience, and in settling mine own courses. But when I look abroad, and see the times so stirring, and so much dissimulation, falsehood, baseness and envy in the world, and so many idle clocks going in men's heads; then it grieveth me much, that I am not sometimes at your Lordship's elbow, that I might give you some of the fruits of the careful advice, modest liberty, and true information of a friend that loveth your Lordship as I do. For though your Lordship's fortunes be above the thunder and storms of inferior regions, yet nevertheless to hear the wind and not to feel it will make one sleep the better.

My good Lord, somewhat have I been and much have I read: so that few things that concern states or greatness are new cases unto me. And therefore I hope I may be no unprofitable servant unto your Lordship. I remember the King was wont to make a character of me, far above my worth, that I was not made for small matters; and your Lordship would sometimes bring me from his Majesty that Latin sentence, *De minimis non curat lex*: and it hath so fallen out that since my retiring, times have been fuller of great matters than before: wherein perhaps, if I had continued near his Majesty, he mought have found more use of my service, if my gift lay that way. But that is but a vain imagination of mine. True it is, that as I do not aspire to use my talent in the King's great affairs; yet for that which may concern your Lordship, and your fortune, no man living shall give you a better account of

faith, industry, and affection than I shall. I must conclude with that which gave me occasion of this letter, which is Mr. Matthew's employment to your Lordship in those parts. Wherein I am verily persuaded your Lordship shall find him a wise and able gentleman, and one that will bend his knowledge of the world (which is great) to serve his Majesty, and the Prince, and in especial your Lordship. So I rest,

Your Lordship's most obliged and faithful servant,
FR. ST. ALBANS.

GRAY'S INN,
18 April, 1623.

POPULARITY OF THE QUEEN OF BOHEMIA (1623).

Source.—Ellis, *Original Letters*. London, 1824. Vol. iii., p. 118.

Mr. Joseph Mead to Sir Martin Stuteville, 25th Jan., 1623.

... The Lieutenant of the Middle Temple played a game this Christmas time whereat his Majesty was highly displeased. He made choice of some thirty of the civillest and best-fashioned gentlemen of the House to sup with him. And being at supper, took a cup of wine in one hand, and held his sword drawn in the other, and so began a health to the distressed Lady Elisabeth, and having drunk, kissed his sword, and laying his hand upon it, took an oath to live and die in her service; then delivered the cup and sword to the next, and so the health and ceremony went round....

THE DUKE OF BUCKINGHAM TO THE KING (1624).

Source.—Ellis, *Original Letters*. Vol. iii., p. 146.

DEAR DAD, GOSSIP AND STEWARD,

Though your baby himself had sent word what need he hath of more jewels, yet will I by this bearer, who can make more speed than Carlile, again acquaint your Majesty therewith, and give my poor and saucy opinion what will be fittest more to send. Hitherto you have been so sparing that whereas you thought to have sent him sufficiently for his own wearing, to present his mistress, who I am sure shall shortly now lose that title, and to lend me, that I on the contrary have been forced to lend him. You need not ask who made me able to do it. Sir, he hath neither chain nor hatband; and I beseech you consider first how rich they are in jewels here, then in what a poor equipage he came in, how he hath no other means to appear like a King's son, how they are usefulest at such a time as this when they may do yourself, your son, and the nation honour, and lastly how it will neither cost nor hazard you anything. These reasons, I hope, since you have ventured already your chiefest jewel, your son, will serve to persuade you to let loose these more after him: first, your best hatband; the Portingall diamond; the rest of the pendant diamonds, to make up a necklace to give his mistress; and the best rope of pearl; with a rich chain or two for himself to wear—or else your Dog must want a collar; which is the ready way to put him into it. There are many other jewels which are of so mean quality as they deserve not that name, but will save much in your purse and serve very well for presents. They had never so good and great an occasion to take the air out of their boxes as at this time. God knows when they shall have such another; and they had need some time to get nearer the Son to continue them in their perfection. Here give me leave humbly on my knees to give your Majesty thanks for that rich jewel you sent me in a box by my Lord Vaughan, and give him leave to kiss your hands from me who took the pains to draw it. My reward to him is this, he spent his time well, which is the thing we should all most desire; and is the glory I covet most here in your service.

Your Majesty's most humble slave and dog,

STEENIE.

MADRID,
25 April, 1623.

Sir, four Asses I have sent you, two he's and two she's; five camels, two he's, two she's, with a young one; and one Elephant, which is worth your seeing. These I have impudently begged for you. There is a Barbary horse comes with them, I think from Watt Aston. My Lord Bristow says he will send you more Camels. When we come ourselves we will bring you horses and asses enough. If I may know whether you desire Mules or not, I will bring them, or Deer of this country either. And I will lay wait for all the rare-coloured birds that can be heard of. But if you do not send your baby jewels enough, I'll stop all other presents. Therefore look to it.

A VINDICATION OF NEW ENGLAND (1624).

Source.—Bradford, *History of the Plymouth Plantation*. Book II.

With the former letter written by Mr. Shirley there were sent sundry objections ... made by some of those that came over on their own account and were returned home. I shall set them down here, with the answers then made unto them and sent over at the return of this ship, which did so confound the objectors as some confessed their fault and others denied what they had said and ate their words, and some others of them have since come over again and here lived.

The first objection was diversity about Religion. Answer: We know no such matter, for here was never any controversy or opposition (either public or private) (to our knowledge,) since we came.

2 *ob.* Neglect of family duties, on the Lord's Day. Ans.: We allow no such thing, but blame it in ourselves and others; and they that thus report it, would have showed their Christian love the more if they had told the offenders of it, rather than thus to reproach them behind their backs. But (to say no more) we wish themselves had given better example.

3 *ob.* Want of both Sacraments. Ans.: The more is our grief that our pastor is kept from us, by whom we might enjoy them; for we used to have the Lord's Supper every Sabbath, and baptism as often as there was occasion of children to baptize.

4 *ob.* Children not catechised nor taught to read. Ans.: Neither is true; for divers take pains with their own as they can; indeed, we have no common school for want of a fit person, or hitherto means to maintain one, though we desire now to begin.

5 *ob.* Many of the particular members of the plantation will not work for the general. Ans.: This also is not wholly true; for though some do it not willingly and others not honestly, yet all do it, and he that doth worst gets his own food and something besides. But we will not excuse them, but labour to reform them the best we can, or else to quit the plantation of them.

6 *ob.* The water is not wholesome. Ans.: If they mean, not so wholesome as the good beer and wine in London, (which they so dearly love,) we will not dispute with them; but else, for water, it is as good as any in the world

(for aught we know,) and it is wholesome enough to us that can be content therewith.

7 *ob.* The ground is barren and doth bear no grass. Ans.: it is here as in all places, some better and some worse; and if they will well consider their words, in England they shall not find such grass in them as in their fields and meadows. The cattle find grass, for they are as fat as need be; we wish we had but one for every hundred that here is graze to keep. Indeed this objection, as some others, are ridiculous to all here which see and know the contrary.

8 *ob.* The fish will not take salt to keep sweet. Ans.: This is as true as that which was written, that there is scarcely a fowl to be seen, nor a fish to be taken. Things likely to be true in a country where so many sail of ships come yearly for the fishing! they might as well say, there can no ale or beer in London be kept from souring.

9 *ob.* Many of them are thievish and steal one from another. Ans.: Would that London had been free from that crime: then we should not have been troubled with these here; it is well known sundry have smarted well for it, and so are the rest like to do, if they be taken.

10 *ob.* The country is annoyed with foxes and wolves. Ans.: So are many other good countries too; but poison, traps and other such means will help to destroy them.

11 *ob.* The Dutch are planted near Hudson's River, and are likely to overthrow the trade. Ans.: They will come and plant in these parts also, if we and others do not, but go home and leave it to them. We rather commend them than condemn them for it.

12 *ob.* The people are much annoyed with mosquitoes. Ans.: They are too delicate and unfit to begin new plantations and colonies, that cannot endure the biting of a mosquito: we would wish such to keep at home till at least they be mosquito proof. Yet this place is as free as any, and experience teacheth that the more the land is tilled and the woods cut down, the fewer there will be, and in the end scarce any at all.

THE IMPEACHMENT OF BUCKINGHAM (1626).

Source.—Rushworth, *Historical Collections*. Vol. i., p. 223.

I.

The Lord Keeper by the King's command, spake next:

... Concerning the Duke of Buckingham, his Majesty hath commanded me to tell you that himself doth know better than any man living the sincerity of the Duke's proceedings; with what cautions of weight and discretion he hath been guided in his public employments from his Majesty and his blessed Father; what enemies he hath procured at home and abroad; what perils of his person and hazard of his estate he ran into for the service of his Majesty, and his ever blessed Father; and how forward he hath been in the service of this House many times since his return from Spain. And therefore his Majesty cannot believe that the aim is at the Duke of Buckingham, but findeth that these Proceedings do directly wound the honour and judgment of himself and of his Father. It is therefore his Majesty's express and final commandment that you yield obedience unto those directions which you have formally received, and cease this unparliamentary inquisition, and commit unto his Majesty's care, and wisdom, and justice the future reformation of these things which you suppose to be otherwise than they should be....

THE COMMONS' REMONSTRANCE TO THE KING

Source.—Rushworth, *Historical Collections*. Vol. i., p. 245.

II.

Now concerning your Majesty's servants, and namely the Duke of Buckingham: We humbly beseech your Majesty to be informed by us your faithful Commons, who can have no private end but your Majesty's service, and the good of our country, that it hath been the ancient constant and undoubted right and usage of Parliaments to question and complain of all persons, of what degree soever, found grievous to the Commonwealth, in abusing the power and trust committed to them by their sovereign. A course approved not only by the examples in your Father's days of famous memory, but by frequent precedents in the best and most glorious reigns of your noble progenitors, appearing both in records and histories; without

which liberty in Parliament no private man, no servant to a king, perhaps no counsellor, without exposing himself to the hazard of great enmity and prejudice, can be a means to call great officers in question for their misdemeanours, but the Commonwealth might languish under their pressures without redress. And whatsoever we shall do accordingly in this Parliament, we doubt not but it shall redound to the honour of the Crown, and welfare of your subjects....

THE COMMONS IN TEARS (1628).

Source.—Rushworth, *Historical Collections*. Vol. i., p. 609.

Mr. Alured to Mr. Chamberlain.

SIR,

Yesterday was a day of desolation among us in Parliament, and this day we fear will be the day of our dissolution: Upon Tuesday Sir John Eliot moved, that as we intended to furnish his Majesty with money, we should also supply him with Counsel, which was one part of the occasion why we were sent by the Country, and called for by his Majesty; And since that House was the greatest Council of the Kingdom, where, or when should His Majesty have better Council than from thence? So he desired there might be a Declaration made to the King of the danger wherein the Kingdom stood by the decay and contempt of Religion, the insufficiency of his Generals, the unfaithfulness of his Officers, the weakness of his Councils, the exhausting of his Treasure, the death of his Men, the decay of Trade, the loss of Shipping, the many and powerful Enemies, the few and the poor Friends we had abroad.

In the enumerating of which, the Chancellor of the Duchy said it was a strange language, yet the House commanded Sir John Eliot to go on. Then the Chancellor desired if he went on, that himself might go out, whereupon they all bade him be gone, yet he stayed and heard him out, and the House generally inclined to such a Declaration to be presented in an humble and modest manner, not prescribing the King the way, but leaving it to his Judgment for reformation. So the next day, being Wednesday, we had a Message from his Majesty by the Speaker that the Session should end on Wednesday, and that therefore we should husband the time, and despatch the old businesses without entertaining new.... The House was much affected to be so restrained, since the House in former times had proceeded by finding and committing John of Gaunt the King's Son and others, and of late have meddled with, and sentenced the Lord Chancellor Bacon, and the Lord Treasurer Cranfield. Then Sir Robert Philips spake, and mingled his words with weeping. Mr. Prynne did the like, and Sir Edward Coke, overcome with passion, seeing the desolation likely to ensue, was forced to sit down when he began to speak, through the abundance of tears, yea, the Speaker in his Speech could not refrain from weeping and shedding of

tears; besides a great many whose great griefs made them dumb and silent, yet some bore up in that storm and encouraged others. In the end they desired the Speaker to leave the Chair, and Mr. Whitby was to come into it, that they might speak the freer and the frequenter, and commanded that no man go out of the House upon pain of going to the Tower. Then the Speaker humbly and earnestly besought the House to give him leave to absent himself for half an hour, presuming they did not think he did it for any ill intention; which was instantly granted him; then upon many Debates about their Liberties hereby infringed, and the imminent danger wherein the Kingdom stood, Sir Edward Coke told them, he now saw God had not accepted of their humble and moderate carriages and fair proceedings, and the rather, because he thought they dealt not sincerely with the King, and with the Country in making a true Representation of the causes of all these miseries, which now he repented himself since things were come to this pass, that he did it not sooner, and therefore he not knowing whether ever he should speak in this House again, would now do it freely, and there protested that the author and cause of all those miseries was the Duke of Buckingham, which was entertained and answered with a cheerful acclamation of the House, as when one good Hound recovers the scent, the rest come in with a full cry: so they pursued it, and every one came on home, and laid the blame where they thought the fault was, and as they were Voting it to the question whether they should name him in their intended Remonstrance, the sole or the Principal cause of all their Miseries at home and abroad: The Speaker having been three hours absent, and with the King, returned with this Message; That the House should then rise (being about eleven a clock, and no Committees should sit in the afternoon) till to-morrow morning; What we shall expect this morning God of Heaven knows. We shall meet timely this morning, partly for the business sake, and partly because two days since we made an Order, that whosoever comes in after prayers, pays twelve pence to the poor. Sir, excuse my haste, and let us have your prayers, whereof both you and we have here need: So in scribbling haste I rest,

Affectionately at your service,

THOMAS ALURED.

This 6 of June, 1628.

THE PETITION OF RIGHTS (1628).

Source.—Somers, *Tracts*. Vol. iv., p. 117.

Whereas it is declared and enacted by a statute made in the time of the reign of King Edward I., commonly called *Statutum de tallagio non concedendo*, that no tallage or aid shall be laid or levied by the King or his heirs in this realm, without the good will and assent of the archbishops, bishops, earls, barons, knights, burgesses and other the freemen of the commonalty of this realm; and by authority of the Parliament holden the five and twentieth year of the reign of King Edward III., it is decreed and enacted: that from henceforth no person should be compelled to make any loans to the King against his will, because such loans were against reason, and the franchise of the land. And by other laws of this realm, it is provided, that none should be charged by any charge or imposition called a benevolence, nor by such like charge, by which the statutes aforementioned, and other the good laws and statutes of this realm, your subjects have inherited this freedom that they should not be compelled to contribute to any tax, tallage, or other the like charge, not set by common consent in parliament.

Yet nevertheless of late, divers commissions directed to sundry commissioners in several counties with instructions, have issued, by means whereof your people have been in divers places assembled, and required to lend certain sums of money unto your Majesty, and [some] of them, upon their refusal so to do, have had an oath administered unto them, not warrantable by the laws or statutes of this realm, and have been constrained to become bound to make appearance, and give attendance before your privy council and in other places: and others of them have been therefore imprisoned, confined and sundry other ways molested and disquieted. And divers other charges have been levied upon your people in several counties, by lord lieutenants, deputy lieutenants, commissioners for musters, justices of the peace, and others by command of or direction from your majesty, or your privy council, against the laws and free customs of the realm.

And whereas by the Statute called the Great Charter of the Liberties of England, it is declared and enacted, that no freeman may be taken or imprisoned, or be disseised of his freehold, or liberties, or his free customs,

or be outlawed, or exiled, or in any manner destroyed, but by the lawful judgment of his peers or by the law of the land.

And in the eight and twentieth year of the reign of King Edward III., it was declared and enacted by the authority of Parliament that no man of what estate or condition that he be, should be put out of his lands or tenements, nor taken, nor imprisoned, nor disherited, nor put to death, without being brought to answer by the process of law.

Nevertheless, against the tenour of the said statutes, and other the good laws and statutes of your realm, to that end provided, divers of your subjects have of late been imprisoned without any cause shewed. And when for their deliverance they were brought before your justices, by your Majesty's writs of *Habeas Corpus*, there to undergo and receive as the court should order, and their keepers commanded to certify the cause of their detainer, no cause was certified, but that they were detained by your Majesty's special command, signified by the lords of your privy council, and yet were returned back to several prisons, without being charged with anything to which they might make answer according to law.

And whereas of late great companies of soldiers and mariners have been dispersed into divers counties of the realm; and the inhabitants, against their wills, have been compelled to receive them into their houses, and there to suffer them to sojourn against the laws and customs of this realm, and to the great grievance and vexation of the people.

And whereas also, by authority of Parliament in the 25th year of Edward III. it is declared and enacted, that no man should be forejudged of life or limb against the form of Magna Charta, and the law of the land, and by the said great Charter and other the laws and statutes of this your realm, no man ought to be adjudged to death, but by the laws established in this realm, either by the customs of the said realm, or by acts of parliament. And whereas no offender of what kind soever is exempted from the proceedings to be used, or punishments to be inflicted by the laws and statutes of this your realm: Nevertheless divers commissioners under your Majesty's great seal have issued forth, by which certain persons have been assigned and appointed commissioners, with power and authority to proceed within the land, according to the justice of martial law, against such soldiers or mariners, or other dissolute persons joining with them, as should commit

any murder, robbery, felony, mutiny, or other outrage or misdemeanour whatsoever, and by such summary course and order, as is agreeable to martial law, and as is used in armies in time of war, to proceed to the trial and condemnation of such offenders, and them to cause to be executed and put to death according to the law martial.

By pretext whereof, some of your Majesty's subjects have been by the said commissioners put to death, when and where, if by the laws and statutes of the realm they had deserved death, by the same laws and statutes also they might, and by no other ought to have been judged and executed.

And also sundry grievous offenders, by colour thereof claiming an exemption, have escaped the punishments due to them by the laws and statutes of this your realm, by reason that divers of your officers and ministers of justice have unjustly refused or forborne to proceed against such offenders, according to the same law and statutes, upon pretence that the said offenders were punishable only by martial law, and by authority of such commissioners as aforesaid. Which commissioners and all other of like nature are wholly and directly contrary to the said laws and statutes of this your realm.

They do therefore humbly pray your most excellent Majesty, that no man hereafter be compelled to make or yield any gift, or loan, benevolence, tax, or such like charge, without common consent by act of parliament. And that none be called to make answer, or to take such oath, or to give attendance, or be confined, or otherwise molested or disquieted, concerning the same or for refusal thereof. And that no freeman, in any such manner as is before mentioned, be imprisoned or detained. And that your majesty would be pleased to remove the said soldiers and mariners, and that your people may not be so burdened in time to come. And that the foresaid commissioners for proceeding by martial law may be revoked and annulled. And that hereafter no commissions of like nature may issue forth to any person or persons whatsoever, to be executed as aforesaid, lest by colour of them any of your Majesty's subjects be destroyed or put to death, contrary to the laws and franchise of the land....

THE CASE OF RICHARD CHAMBERS (1629).

Source.—Rushworth. Vol. i., p. 672.

So the fine was settled to £2,000 and all (except the two Chief Justices) concurred for a submission to be made. And accordingly a copy of the submission was sent to the Warden of the Fleet, to show the said Richard Chambers.

"I, Richard Chambers of London, Merchant, do humbly acknowledge that, whereas upon an information exhibited against me by the King's Attorney General, I was in Easter Term last sentenced by the Honourable Court of Star Chamber, for that in September last, 1628, being convented before the Lords and others of his Majestie's most honourable Privy Council Board, upon some speeches then used concerning the merchants of this kingdom, and his Majesty's well and gracious usage of them, did then and there, in insolent contemptuous and seditious manner, falsely and maliciously say and affirm 'That they,' meaning the merchants, 'are in no parts of the world so screwed and wrung as in England, and that in Turkey they have more encouragement....' Now I, the said Richard Chambers in obedience to the sentence of the said honourable court, do humbly confess and acknowledge the speaking of these words aforesaid and am heartily sorry for the same: and do humbly beseech your Lordships all to be honourable intercessors for me to his Majesty, that he would be graciously pleased to pardon this great error and fault so committed by me."

When Mr. Chambers read this draft of submission, he thus subscribed the same.

"All the abovesaid Contents and Submission I Richard Chambers do utterly abhor and detest, as most unjust and false: and never to death will acknowledge any part thereof.

"RICH. CHAMBERS."

Also he underwrit these Texts of Scripture to the said submission before he returned it [eight texts, mostly from the Old Testament, on God's care for justice and truth].

PROCLAMATION TO THE EASTLAND COMPANY (1629).

Source.—Rymer, *Fœdera*. Vol. xix., p. 129.

It is a greate parte of our royal care, like as it was of our royal Father of blessed memory deceased, to maintain and increase the trade of our marchants, and the strength of our Navy, as principal veins and sinews for the wealth and strength of our kingdom;

Whereas therefore the Society and Company of our Eastland Marchaunts trading the Baltic Seas, have by the space of Fifty years at the least, had a settled and constant possession of Trade in those parts, and have had both the sole carrying thither of our English commodities, and also the sole bringing in of all the Commodities of those Countries, as namely, hemp, yarn, cable yarn, flax, potashes, soapashes, polonia wool, cordage, eastland linen cloth, pitch, tar, and wood, whereby our Kingdom hath been much enriched, our ships and mariners set on work, and the honour and fame of our nation and kingdom spread and enlarged in those parts.

And whereas for their further encouragement the said Company have had and enjoyed, by Letters Patent under the Great Seal of England in the time of the late Queen Elizabeth, privileges, as well for the sole carrying out to those countries of all our English commodities, as also for the sole bringing in of the abovenamed commodities of the said countries, with general prohibitions and restraints of others not licensed and authorized, by the said Letters Patents to traffick or trade contrary to the tenor of the same Letters Patents: We minding the upholding and continuance of the said trade, and not to suffer that the said Society shall sustain any violation or diminution of their liberties and privileges, Have thought good to ratify and publish unto all persons, as well subjects as strangers, the said privileges and restraints, to the end that none of them presume to attempt any thing against the same;

And We do hereby straitly charge and command all our customers, comptrollers, and all other our officers at the ports, and also the farmers of our customes, and their Deputies and Wayters, that they suffer not any broadcloth, dozens, kersies, bayes, skins, or such like English commodities to be shipped for exportation to those parts, nor any hemp, flax dressed or undressed, yarn, cable yarn, cordage, potashes, sopeashes, polonia wool,

eastland linen cloth, pitch, tarr or wood, or any other commodities whatsoever of those foreign parts and regions, wherein the said Company have used to trade, to be landed, except only such as shall be brought in by such as are free of the said Company; provided always that the importation of corn and grain be left free and without restraint, any thing herein contained to the contrary notwithstanding.

Furthermore, Whereas there hath been in auncient time divers good and politic laws made against the shipping of merchandises in stranger's bottoms, either inward or outward, as namely the statutes of 5 Ric. II., 4 Hen. VII., 32 Hen. VIII., which laws of later years have been much neglected to the great prejudice of the navigation of our kingdom: We do straitly charge and command, that the said laws be from henceforth duly put in execution, and that none of the said Company, nor any other be permitted to export or import any of the abovementioned commodities, in other than English bottoms, upon the pains in the said Statutes contained, and upon pain of our high indignation and displeasure, towards all our officers and ministers which shall be found slack and remiss in procuring and assisting the due execution of the said laws.

CHILLINGWORTH ON TOLERATION
(A BROAD CHURCH VIEW).

Source.—Chillingworth, *Religion of the Protestants*. Ed. 1719. P. 130.

Lastly: though you are apt to think yourselves such necessary instruments for all good purposes, and that nothing can be well done unless you do it; that no unity or constancy in religion can be maintained, but inevitably Christendom must fall to ruin and confusion, unless you support it; yet we that are indifferent and impartial, and well content that God should give us his own favours, by means of his own appointment, not of our choosing, can easily collect out of these very words, that not the infallibility of your or of any Church, but the *apostles and prophets, and evangelists, &c., which Christ gave upon his ascension*, were designed by him, for the compassing all these excellent purposes, by their preaching while they lived, and by their writings for ever. And if they fail hereof, the reason is not any insufficiency or invalidity in the means, but the voluntary perverseness of the subjects they have to deal with; who, if they would be themselves, and be content that others should be, in the choice of their religion, the servants of God and not of men; if they would allow, that the way to heaven is no narrower now than Christ left it, his yoke no heavier than he made it; that the belief of no more difficulties is required now to salvation, than was in the primitive church; that no error is in itself destructive, and exclusive from salvation now, which was not then; if, instead of being zealous Papists, earnest Calvinists, rigid Lutherans, they would become themselves, and be content that others should be, plain and honest Christians; if all men would believe the Scripture, and, freeing themselves from prejudice and passion, would sincerely endeavour to find the true sense of it, and live according to it, and require no more of others but to do so; nor denying their communion to any that do so, would so order their public service of God, that all which do so may, without scruple or hypocrisy, or protestation against any part of it, join with them in it;—who doth not see that seeing (as we suppose here, and shall prove hereafter) all necessary truths are plainly and evidently set down in Scripture, there would of necessity be among all men, in all things necessary, unity of opinion? And, notwithstanding any other differences that are or could be, unity of communion and charity and mutual toleration? By which means, all schism and heresy would be

banished the world; and those wretched contentions which now rend and tear in pieces, not the coat, but the members and bowels, of Christ, which mutual pride, and tyranny, and cursing, and killing, and damning, would fain make immortal, should speedily receive a most blessed catastrophe.

THE CHURCH OF GEORGE HERBERT (1633).

Source.—George Herbert, *Poems*. Ed. 1633. P. 102.

I joy dear mother when I view
Thy perfect lineaments and hue,
Both sweet and bright.
Beauty in thee takes up her place
And dates her letters from thy face
When she doth write.

A fine aspect in fit array
Neither too mean nor yet too gay
Shows who is best.
Outlandish looks may not compare,
For all they either painted are,
Or else undrest.

She on the hills which wantonly
Allureth all in hope to be
By her preferred.
Hath kissed so long her painted shrines,
That e'en her face by kissing shines
For her reward.

She in the valley is so shy
Of dressing, that her hair doth lie
About her ears.
While she avoids her neighbour's pride;
She wholly goes on t' other side,
And nothing wears.

But, dearest mother, (what those miss),
The mean, thy praise and glory is,
And long may be
Blessed be God whose love it was
To double-moat thee with his grace,
And none but thee.

HAPPY ENGLAND (1630-1640).

Source.—Clarendon, *History of Rebellion*. Book I., § 159.

Now, I must be so just as to say, that, during the whole time that these pressures were exercised, and these new and extraordinary ways were run, that is from the dissolution of the Parliament in the fourth year (1629) to the beginning of this Parliament which was above 12 years, this kingdom and all his majesty's dominions (of the interruption in Scotland somewhat shall be said in its due time and place), enjoyed the greatest calm, and the fullest measure of felicity, that any people in any age, for so long time together, have been blessed with; to the wonder and envy of all the parts of Christendom.

And in this comparison I am neither unmindful of, nor ungrateful for the happy times of Queen Elisabeth, nor for those more happy under King James. But for the former, the doubts, hazards, and perplexities, upon a total change and alteration of religion, and some confident attempts upon a further alteration by those who thought not the reformation enough; the charge, trouble, and anxiety of a long continued war (how prosperous and successful soever) even during that Queen's whole reign; and (besides some domestic ruptures into rebellion, frequently into treason, and besides the blemish of an unparalleled act of blood upon the life of a crowned neighbour, queen and ally) the fear and apprehension of what was to come (which is one of the most unpleasant kinds of melancholy) from an unknown, at least an unacknowledged successor to the crown, clouded much of that prosperity then which now shines with so much splendour before our eyes in chronicle.

And for the other under King James (which indeed were excellent times *bona si sua norint*), the mingling with a stranger nation, (formerly not very gracious with this,) which was like to have more interest of favour: the subjection to a stranger prince, whose nature and disposition they knew not; the noise of treason, (the most prodigious that had ever been attempted), upon his first entrance into the kingdom: the wants of the Crown not inferior to what it hath since felt, (I mean whilst it sat right on the head of the King,) and the pressures upon the subject of the same nature, and no less complained of: the absence of the prince in Spain, and the solicitude

that his highness might not be disposed in marriage to the daughter of that kingdom; rendered the calm and tranquillity of that time less equal and pleasant. To which may be added the prosperity and happiness of the neighbour kingdoms, not much inferior to that of this, which, according to the pulse of states, is a great diminution of their health; at least their prosperity is much improved, and more visible, by the misery and misfortunes of their neighbours.

The happiness of the times I mentioned was enviously set off by this, that every other kingdom, every other province were engaged, many entangled, and some almost destroyed by the rage and fury of arms; those which were ambitiously in contention with their neighbours having the view and apprehensions of the miseries and desolation, which they saw other states suffer by a civil war; whilst the kingdoms we now lament were alone looked upon as the garden of the world; Scotland (which was but the wilderness of that garden) in a full, entire, undisturbed peace, which they had never seen, the rage and barbarism (that is, the blood, for of the charity we speak not) of their private feuds, being composed to the reverence or to the awe of public justice; in a competency, if not in an excess of plenty, which they had never hoped to see, and in a temper (which was the utmost we desired and hoped to see) free from rebellion; Ireland, which had been a sponge to draw and a gulf to swallow all that could be spared, and all that could be got from England, merely to keep the reputation of a kingdom, reduced to that good degree of husbandry and government, that it not only subsisted of itself, and gave this kingdom all that it might have expected from it; but really increased the revenue of the crown forty or fifty thousand pounds a year, besides much more to the people in the traffic and trade from thence; arts and sciences fruitfully planted there; and the whole nation beginning to be so civilized, that it was a jewel of great lustre in the royal diadem.

When these outworks were thus fortified and adorned, it was no wonder if England was generally thought secure, with the advantages of its own climate; the court in great plenty, or rather (which is the discredit of plenty) excess, and luxury; the country rich, and, which is more, fully enjoying the pleasure of its own wealth, and so the easier corrupted with the pride and wantonness of it; the Church flourishing with learned and extraordinary men, and (which other good times wanted) supplied with oil to feed those

lamps, and the protestant religion more advanced against the Church of Rome by writing especially (without prejudice to other useful and godly labours) by those two books of the late lord archbishop of Canterbury his grace, and of Mr. Chillingworth, than it had been from the Reformation; trade increased to that degree, that we were the exchange of Christendom, (the revenue thereof to the crown being almost double to what it had been in the best times), and the bullion of all other kingdoms brought to receive a stamp from the mint of England; all foreign merchants looking upon nothing as their own, but what they had laid up in the warehouses of this kingdom; the royal navy, in number and equipage much above former times, very formidable at sea; and the reputation of the greatness and power of the King much more with foreign princes than any of his progenitors; for those rough courses, which made him haply less loved at home, made him more feared abroad; by how much the power of kingdoms is more revered than their justice by their neighbours: and it may be, this consideration might not be the least motive, and may not be the worst excuse, for those councils. Lastly, for a complement of all these blessings, they were enjoyed by and under the protection of a king, of the most harmless disposition and the most exemplary piety, the greatest example of sobriety, chastity, and mercy, that any prince hath been endued with, (and God forgive those that have not been sensible of and thankful for those endowments) and who might have said, that which Pericles was proud of, upon his deathbed, "that no Englishman had ever worn a black gown through his occasion." In a word, many wise men thought it a time, wherein those two adjuncts, which Nerva was deified for uniting, were as well reconciled as is possible.

But all these blessings could but enable, not compel us to be happy: we wanted that sense, acknowledgement, and value of our own happiness, which all but we had; and took pains to make, when we could not find, ourselves miserable. There was in truth a strange absence of understanding in most, and a strange perverseness of understanding in the rest: the court full of excess, idleness, and luxury; and the country full of pride, mutiny and discontent; every man more troubled and perplexed at that they called the violation of one law, than delighted or pleased with the observance of all the rest of the Charter; never imputing the increase of their receipts, revenue, and plenty, to the wisdom, virtue and merit of the Crown, but objecting every little trivial imposition to the exorbitancy and tyranny of the

government; the growth of knowledge and learning being disrelished for the infirmities of some learned men, and the increase of grace and favour upon the Church, more repined and murmured at, than the increase of piety and devotion in the Church, which was as visible, acknowledged or taken notice of; whilst the indiscretion and folly of one sermon at Whitehall was more bruited abroad and commented upon than the wisdom, sobriety and devotion of a hundred.

WENTWORTH IN IRELAND (1634-1636).

I. ADVICE TO PARLIAMENT.

Source.—*Lord-Deputy's Speech to Both Houses of Parliament, July 15, 1634.* Knowler, *Strafford's Letters and Despatches*. London, 1739. Vol. i., pp. 289-290.

Chiefly beware of divisions in your counsels. For division confines always upon ruin, leads ever to some fatal precipice or other. Divide not between Protestant and Papist, for this meeting is merely civil, religion not at all concerned one way or another. In this I have endeavoured to give you satisfaction both privately and publicly, and now I assure you again there is nothing of religion to be stirred in this Parliament, being only assembled to settle the temporal state, which you may now safely confide upon. For, believe me, I have a more hallowed regard to my master's honour, than to profane his chair with untruths, so as if, after all this, any shall again spring this doubt amongst you, it is not to be judged to arise from hardness of belief, but much rather from a perverse and malevolent spirit, desirous to embroil your peaceable proceedings with party and faction. And I trust your wisdom and temper will quickly conjure all such forth from amongst you.

Divide not nationally, betwixt English and Irish. The King makes no distinction between you, reposes you all without prejudice, and that upon safe and sure grounds, I assure myself, his good and faithful subjects. And madness it were in you then to raise that wall of separation amongst yourselves. If you should, you know who the old proverb deems likeliest to go to the wall, and believe me England will not prove the weakest.

But above all, divide not between the interests of the king and his people as if there were one being of the king and another being of his people. This is the most mischievous principle that can be laid in reason of state, in that which, if you watch not very well, may the easiest mislead you. For you might as well tell me a head might live without a body, or a body without a head, as that it is possible for a king to be rich and happy without his people be so likewise, or that a people can be rich and happy without the king be so also. Most certain it is, that their well-being is individually one and the same, their interests woven up together with so tender and close threads, as cannot be pulled asunder without a rent in the commonwealth.

II. RELIGION.

To Mr. Secretary Coke, Dec. 16, 1634. Knowler, vol. i., p. 351.

It may seem strange that this people should be so obstinately set against their own good, and yet the reason is plain; for the Friars and Jesuits fearing that these laws would conform them here to the manners of England, and in time be a means to lead them on to a conformity in religion and faith also, they catholicly oppose and fence up every path leading to so good a purpose. And indeed I see plainly that so long as this kingdom continues popish, they are not a people for the crown of England to be confident of. Whereas if they were not still distempered by the infusion of these Friars and Jesuits, I am of belief, they would be as good and loyal to their King as any other subjects.

III. COMMERCIAL POLICY.

Wentworth to Sir Christopher Wandesford, July 25, 1636. Knowler, vol. ii., p. 19.

[A summary of his report to the King.]

... [I informed them] that there was little or no manufacture amongst them, but some small beginnings towards a clothing trade, which I had and so should still discourage all I could, unless otherwise directed by his Majesty and their Lordships, in regard it would trench not only upon the clothing of England, being our staple commodity, so as if they should manufacture their own wools, which grew to very great quantities, we should not only lose the profit we now made by indraping their wools, but his Majesty lose extremely by his customs, and in conclusion it might be feared, they would beat us out of the Trade itself, by underselling us, which they were well able to do. Besides, in reason of State, so long as they did not indrape their own wools, they must of necessity fetch their clothing from us, and consequently in a sort depend upon us for their livelihood, and thereby become so dependent upon this crown, as they could not depart from us without nakedness to themselves and children.

Yet have I endeavoured another way to set them on work, and that is by bringing in the making and trade of linen cloth, the rather in regard the women are all naturally bred to spinning, that the Irish earth is apt for bearing of flax, and that this manufacture would be in the conclusion rather

a benefit than other to this kingdom. I have therefore sent for the flax seed into Holland, being of a better sort than we have any; and sown this year a thousand pounds worth of it (finding by some I sowed the last year that it takes there very well). I have sent for workmen out of the Low Countries, and forth of France, and set up already six or seven looms, which if it please God to bless us this year, I trust so to invite them to follow it, when they see the great profit arising thereby, as that they shall generally take to it and employ themselves that way, which if they do, I am confident it will prove a mighty business, considering that in all probability we shall be able to undersell the linen cloths of Holland and France at least twenty in the hundred.

IV. HIS WEARINESS.

To Laud, Aug. 17, 1636, from Gawthorp. Knowler, vol. ii., p. 26.

I am gotten hither to a poor house I have, having been this last week almost feasted to death at York. In truth for anything I can find they were not ill-pleased to see me. Sure I am it much contented me to be amongst my old acquaintance, which I would not leave for any other affection I have, but to that which I both profess and owe to the person of his sacred majesty. Lord! with what quietness in myself could I live here, in comparison of that noise and labour I meet with elsewhere; and, I protest, put up more crowns in my purse at the year's end too. But we'll let that pass. For I am not like to enjoy that blessed condition upon earth. And therefore my resolution is set to endure and struggle with it so long as this crazy body will bear it; and finally drop into the silent grave, where both all these (which I now could, as I think, innocently delight myself in) and myself are to be forgotten: and fare them well.

[LAUD TO WENTWORTH \(1633\).](#)

Source.—*Works of William Laud, D.D.* Vol. vi., pp. 310-312. Parker, Oxford, 1857.

MY VERY GOOD LORD,

I heartily thank your Lordship for all your love, and for the joy you are pleased both to conceive and express for my translation to Canterbury; for I conceive all your expressions to me are very hearty, and such I have hitherto found them. And now, since I am there, (for my translation is to be on Thursday, Sept. 19th,) I must desire your Lordship not to expect more at my hands than I shall be able to perform, either in Church or State; and this suit of mine hath a great deal of reason in it; for you write, that ordinary things are far beneath that which you cannot choose but promise yourself of me in both respects. But, my Lord, to speak freely, you may easily promise more in either kind than I can perform. For, as for the Church, it is so bound up in the forms of the common law, that it is not possible for me, or for any man, to do that good which he would, or is bound to do. For your Lordship sees, no man clearer, that they which have gotten so much power in and over the Church, will not let go their hold; they have, indeed, fangs with a witness, whatsoever I was once said in passion to have. And for the State, indeed, my Lord, I am for *Thorough*, but I see that both thick and thin stays somebody, where I conceive it should not; and it is impossible for me to go through alone. Besides, private ends are such blocks in the public way, and lie so thick, that you may promise what you will, and I must perform what I can, and no more.

Next, my Lord, I thank you heartily for your kind wishes to me, that God would send me many and happy days where I now am to be. Amen. I can do little for myself, if I cannot say so; but truly, my Lord, I look for neither: not for many, for I am in years, and have had a troublesome life; not for happy, because I have no hope to do the good I desire; and, besides, I doubt I shall never be able to hold my health there one year; for instead of all the jolting which I had over the stones between London House and Whitehall, which was almost daily, I shall have now no exercise, but slide over in a barge to the Court and Star Chamber; and in truth, my Lord, I speak seriously, I have had a heaviness hang upon me ever since I was nominated to this place, and I can give myself no account of it, unless it proceed from

an apprehension that there is more expected from me than the craziness of these times will give me leave to do.

Now, my Lord, why may you not write, as whilom you did to the Bishop of London? The man is the same, and the same to you; but I see you stay for better acquaintance, and till then you will keep distance. I perceive, also, my predecessor's awe is upon you, but I doubt I shall never hold it long; and I was about to swear by my troth, as you do, but I remember oaths heretofore were wont to pass under the Privy Seal, and not the Ordinary Seal of letters. Well, wiser or not, you must take that as you find it; but I will not write any long letters and leave out my mirth, it is one of the recreations I have always used with my friends, and 'tis hard leaving an old custom, neither do I purpose to do it; though I mean to make choice of my friends, to whom I will use it. For proof of this, I here send your Lordship some sermon notes which I have received from Cambridge; and, certainly, if this be your method there, you ride as much aside as ever Croxton did towards Ireland. I wish your Lordship all health and happiness, and so leave you to the grace of God, ever resting

Your Lordship's very loving poor Servant,
W. CANT. ELECT.

FULHAM,
Sept. 9th, 1633.

SHIP MONEY. THE KING'S CASE LAID BEFORE THE JUDGES, WITH THEIR
ANSWER (1637).

Source.—Rushworth. Vol. ii., p. 355.

CAROLUS REX,

When the good and safety of the kingdom in general is concerned, and the whole kingdom in danger, whether may not the King, by writ under the Great Seal of England, command all the subjects of our kingdom at their charge to provide and furnish such a number of ships, with men, victuals, and munition, and for such time as we shall think fit for the defence and safeguard of the kingdom from such danger and peril, and by law compel the doing thereof, in case of refusal or refractoriness: and whether in such a case is not the King the sole judge both of the danger, and when and how the same is to be prevented and avoided?

MAY IT PLEASE YOUR MOST EXCELLENT MAJESTY,

We have, according to your Majesty's command, every man by himself, and all of us together, taken into serious consideration the case and question signed by your Majesty, and inclosed in your royal letter; and we are of opinion, that when the good and safety of the kingdom in general is concerned, and the kingdom in danger, your Majesty may, by writ under the Great Seal of England, command all your subjects of this your kingdom, at their charge to provide and furnish such a number of ships, with men, victuals, and munition, and for such time as your Majesty shall think fit for the defence and safeguard of this kingdom from such danger and peril: and that by law your Majesty may compel the doing thereof in case of refusal or refractoriness: and we are also of opinion, that in such case your Majesty is the sole judge both of the danger, and when and how the same is to be prevented and avoided.

[Signed by twelve Judges.]

LILBURNE'S PUNISHMENT (1638).

Source.—Rushworth. Vol. ii., p. 466.

ORDER OF THE STAR CHAMBER, APRIL 8, 1638.

Whereas *John Lilburne*, Prisoner in the *Fleet*, by Sentence in *Star Chamber*, did this day suffer condign Punishment for his several offences, by whipping at a Cart, and standing in the *Pillory*, and (as their Lordships were this day informed) during the time that his Body was under the said Execution, audaciously and wickedly, not only uttered sundry scandalous and seditious Speeches, but likewise scattered sundry Copies of seditious Books amongst the People that beheld the said Execution, for which very thing, amongst other offences of like nature, he had been Censured in the said Court by the aforesaid Sentence. It was thereupon ordered by their Lordships, that the said *Lilburne* should be laid alone with Irons on his Hands and Legs in the Wards of the *Fleet*, where the basest and meanest sort of Prisoners are used to be put; and that the Warden of the *Fleet* take special care to hinder the resort of any Person whatsoever unto him, and particularly that he be not supplied with any Hand, and that he take special notice of all Letters, Writings, and Books brought unto him, and seize and deliver the same unto their Lordships. And take notice from time to time who they be that resort to the said Prison to visit the said *Lilburne*, and to speak with him, and inform the Board....

THE BILL OF ATTAINDER AGAINST STRAFFORD (1641).

Source.—*Harleian Miscellany*. Vol. iv., p. 527.

Whereas the Knights, Citizens and Burgesses of the House of Commons in this present Parliament assembled, have, in the name of themselves, and all the Commons of England, impeached Thomas Earl of Strafford of high treason, for endeavouring to subvert the ancient and fundamental laws and government of his Majesty's realms of England and Ireland, and to introduce an arbitrary and tyrannical government against law in the said kingdoms; and for exercising a tyrannous and exorbitant power over and against the laws of the said kingdoms, over the liberties, estates and lives of his majesty's subjects; and likewise for having, by his own authority, commanded the laying and assessing of soldiers upon his Majesty's subjects in Ireland against their consents, to compel them to obey his unlawful commands and orders, made upon paper petitions, in causes between party and party, which accordingly was executed upon divers of his Majesty's subjects in a warlike manner within the said realm of Ireland, and in so doing did levy war against the King's majesty and his liege people in that kingdom; and also for that he, upon the unhappy dissolution of the last Parliament, did slander the House of Commons to his Majesty and did counsel and advise his Majesty that he was loose and absolved from rules of government, and that he had an army in Ireland which he might employ to reduce this kingdom; for which he deserves to undergo the pains and forfeitures of high treason.

And the said Earl hath been also an incendiary of the wars between the two kingdoms of England and Scotland, all which offences have been sufficiently proved against the said Earl upon his impeachment.

Be it therefore enacted by the King's most excellent Majesty and by the Lords and Commons in the present Parliament assembled and by authority of the same, that the said Earl of Strafford for the heinous crimes and offences aforesaid, stand and be adjudged and attainted of high treason, and shall suffer the pain of death, and incur the forfeitures of his goods and chattels, lands, tenements, and hereditaments, of any estate of freehold or inheritance in the said kingdoms of England and Ireland which the said

Earl, or any other to his use, or in trust for him, have or had, the day of the first sitting of this present parliament or at any time since.

Provided that no judge or judges, justice or justices whatsoever shall adjudge or interpret any act or thing to be treason, nor hear or determine any treason, in any other manner than he or they should or ought to have done before the making of this act, and as if this act had never been had or made.

STRAFFORD'S LAST LETTER TO THE KING (1641).

Source.—Rushworth. Vol. iii., p. 251.

MAY IT PLEASE YOUR SACRED MAJESTY,

It hath been my greatest grief, in all these troubles, to be taken as a person which should endeavour to represent and set things amiss between your Majesty and your people; and to give counsels tending to the disquiet of the three kingdoms.

Most true it is, that this (mine own private condition considered,) had been a great madness; since, through your gracious favour I was so provided, as not to expect, in any kind, to mind my fortune or please my mind more, than by resting where your bounteous hands had placed me.

Nay, it is most mightily mistaken. For unto your majesty it is well known, my poor and humble advice concluded still in this, that your majesty and your people could never be happy till there was a right understanding betwixt you and them; and that no other means were left to effect and settle this happiness but by the counsel and assent of your parliament; or to prevent the growing evils of this state, but by entirely putting yourself in this last resort upon the loyalty and good affections of your English subjects.

Yet, such is my misfortune, that this truth findeth little credit; yea, the contrary seemeth generally to be believed, and myself reputed as one who endeavoured to make a separation between you and your people. Under a heavier censure than this, I am persuaded, no gentleman can suffer.

Now I understand the minds of men are more and more incensed against me, notwithstanding your Majesty hath declared that in your princely opinion, I am not guilty of treason; nor are you satisfied in your conscience to pass the bill.

This bringeth me in a very great strait: there is before me the ruin of my children and family, hitherto untouched, in all the branches of it, with any foul crime: here are before me the many ills which may befall your sacred person, and the whole kingdom, should yourself and the parliament part less satisfied one with the other than is necessary for the preservation both of

king and people: here are before me the things most valued, most feared by mortal men, life and death.

To say, Sir, that there hath not been a strife in me, were to make me less man than (God knoweth) my infirmities make me. And to call a destruction upon myself and young children, where the intentions of my heart, at least, have been innocent of this great offence, may be believed will find no easy consent from flesh and blood.

But, with much sadness, I am come to a resolution of that, which I take to be the best becoming me; and to look upon it as that which is most principal in itself, which, doubtless, is the prosperity of your sacred person, and the commonwealth, things infinitely before any private man's interest.

And therefore, in few words, as I put myself wholly upon the honour and justice of my peers, so clearly, as to wish your majesty might please to have spared that declaration of yours on Saturday last, and entirely to have left me to their lordships; so now, to set your majesty's conscience at liberty, I do most humbly beseech your majesty, for the prevention of evils which may happen by your refusal, to pass this bill, and by this means to remove, (praised be God, I cannot say this accursed, but I confess) this unfortunate thing forth of the way; towards that blessed agreement, which God, I trust, shall ever establish between you and your subjects.

Sir, my consent shall more acquit you herein to God, than all the world can do besides. To a willing man there is no injury done: and as, by God's grace, I forgive all the world with calmness and meekness of infinite contentment to my dislodging soul: so, Sir, to you I can give the life of this world with all the cheerfulness imaginable, in the just acknowledgement of your exceeding favours; and only beg that, in your goodness, you would vouchsafe to cast your gracious regard upon my poor son and his sisters, less or more, and no otherwise than their (in present) unfortunate father may hereafter appear more or less guilty of his death. God long preserve your majesty.

Your majesty's most humble, most faithful subject and servant,

STRAFFORD.

TOWER,
May 4, 1641.

THE KING'S ANSWER TO THE GRAND REMONSTRANCE (1641).

Source.—Rushworth. Vol. iv., p. 452.

We having received from you, soon after our return out of Scotland, a long petition consisting of many desires of great moment, together with a declaration of a very unusual nature annexed thereunto, we had taken some time to consider of it, as befitted us in a matter of that consequence, being confident that your own reason and regard to us, as well as our express intimation by our comptroller, to that purpose, would have restrained you from the publishing of it till such time as you should have received our answer to it; but, much against our expectation, finding the contrary, that the said declaration is already abroad in print, by directions from your House as appears by the printed copy, we must let you know that we are very sensible of the disrespect. Notwithstanding, it is our intention that no failing on your part shall make us fail in ours, of giving all due satisfaction to the desires of our people in a parliamentary way; and therefore we send you this answer to your petition, reserving ourself in point of the declaration which we think unparliamentary, and shall take a course to do that which we shall think fit in prudence and honour.

To the petition, we say that although there are divers things in the preamble of it which we are so far from admitting that we profess we cannot at all understand them, as of "a wicked and malignant party prevalent in the government"; of "some of that party admitted to our Privy Council and to other employments of trust, and nearest to us and our children"; of "endeavours to sow among the people false scandals and imputations, to blemish and disgrace the proceedings of the Parliament"; all, or any of them, did we know of, we should be as ready to remedy and punish as you to complain of, so that the prayers of your petition are grounded upon such premises as we must in no wise admit; yet, notwithstanding, we are pleased to give this answer to you.

To the first, concerning religion, consisting of several branches, we say that, for preserving the peace and safety of this kingdom from the design of the Popish party, we have, and will still, concur with all the just desires of our people in a parliamentary way: that, for the depriving of the Bishops of their votes in Parliament, we should have you consider that their right is

grounded upon the fundamental law of the kingdom and constitution of Parliament. This we would have you consider; but since you desire our concurrence herein in a parliamentary way, we will give no further answer at this time.

As for the abridging of the inordinate power of the clergy, we conceive that the taking away of the High Commission Court hath well moderated that; but if there continue any usurpations or excesses in their jurisdictions, we therein neither have nor will protect them.

Unto that clause which concerneth corruptions (as you style them) in religion, in Church government, and in discipline, and the removing of such unnecessary ceremonies as weak consciences might check at: that for any illegal innovations which may have crept in, we shall willingly concur in the removal of them: that, if our Parliament shall advise us to call a national synod, which may duly examine such ceremonies as give just cause of offence to any, we shall take it into consideration, and apply ourself to give due satisfaction therein; but we are very sorry to hear, in such general terms, corruption in religion objected, since we are persuaded in our consciences that no Church can be found upon the earth that professeth the true religion with more purity of doctrine than the Church of England doth, nor where the government and discipline are jointly more beautified and free from superstition, than as they are here established by law, which, by the grace of God, we will with constancy maintain (while we live) in their purity and glory, not only against all invasions of Popery, but also from the irreverence of those many schismatics and separatists, wherewith of late this kingdom and this city abounds, to the great dishonour and hazard both of Church and State, for the suppression of whom we require your timely aid and active assistance.

To the second prayer of the petition, the removal and choice of councillors, we know not any of our Council to whom the character set forth in the petition can belong: that by those whom we had exposed to trial, we have already given you sufficient testimony that there is no man so near unto us in place or affection, whom we will not leave to the justice of the law, if you shall bring a particular charge and sufficient proofs against him; and of this we do again assure you, but in the meantime we wish you to forbear such general aspersions as may reflect upon all our Council, since you name none in particular.

That for the choice of our councillors and ministers of state, it were to debar us that natural liberty all freemen have; and as it is the undoubted right of the Crown of England to call such persons to our secret counsels, to public employment and our particular service as we shall think fit, so we are, and ever shall be, very careful to make election of such persons in those places of trust as shall have given good testimonies of their abilities and integrity, and against whom there can be no just cause of exception whereon reasonably to ground a diffidence; and to choices of this nature, we assure you that the mediation of the nearest unto us hath always concurred.

To the third prayer of your petition concerning Ireland, we understand your desire of not alienating the forfeited lands thereof, to proceed from much care and love, and likewise that it may be a resolution very fit for us to take; but whether it be seasonable to declare resolutions of that nature before the events of a war be seen, that we much doubt of. Howsoever, we cannot but thank you for this care, and your cheerful engagement for the suppression of that rebellion; upon the speedy effecting whereof, the glory of God in the protestant profession, the safety of the British there, our honour, and that of the nation, so much depends; all the interests of this kingdom being so involved in that business, we cannot but quicken your affections therein, and shall desire you to frame your counsels, to give such expedition to the work as the nature thereof and the pressures in point of time require; and whereof you are put in mind by the daily insolence and increase of those rebels.

For conclusion, your promise to apply yourselves to such courses as may support our royal estate with honour and plenty at home, and with power and reputation abroad, is that which we have ever promised ourself, both from your loyalties and affections, and also for what we have already done, and shall daily go adding unto, for the comfort and happiness of our people.

"ROUNDHEADS."

Source.—*Memoirs of Colonel Hutchinson*. Ed. Bohn. G. Bell and Son. P. 120.

When puritanism grew into a faction, the zealots distinguished themselves, both men and women, by several affectations of habit, looks, and words, which, had it been a real forsaking of vanity, and an embracing of sobriety in all those things, would have been most commendable; but their quick forsaking of those things, when they had arrived at their object, showed that they either never took them up for conscience, or were corrupted by their prosperity to take up those vain things they durst not practise under persecution. Among other affected habits, few of the puritans, what degree soever they were of, wore their hair long enough to cover their ears, and the ministers and many others cut it close round their heads, with so many little peaks, as was something ridiculous to behold; whereupon Cleaveland, in his *Hue and Cry* after them, begins,

"With hayre in Characters and Luggs in Text," etc.

From this custom of wearing their hair, that name of roundhead became the scornful term given to the whole parliament party, whose army indeed marched out as if they had been only sent out till their hair was grown. Two or three years after, any stranger that had seen them, would have inquired the reason of that name. It was very ill applied to Mr. Hutchinson, who, having naturally a very fine thickset head of hair, kept it clean and handsome, so that it was a great ornament to him; although the godly of those days, when he embraced their party, would not allow him to be religious because his hair was not in their cut, nor his words in their phrase, nor such little formalities altogether fitted to their humour; who were, many of them, so weak as to esteem such insignificant circumstances, rather than solid wisdom, piety, and courage, which brought real aid and honour to their party. But as Mr. Hutchinson chose not them, but the God they served, and the truth and righteousness they defended, so did not their weaknesses, censures, ingratitude, or discouraging behaviour, with which he was abundantly exercised all his life, make him forsake them in any thing wherein they adhered to just and honourable principles or practices; but when they apostatized from these, none cast them off with greater indignation, how shining soever the profession was that guilt, not a temple of living grace, but a tomb, which only held the carcase of religion.

[A NATIONAL FAST \(1642\).](#)

Source.—*Acts and Ordinances of Interregnum*. Ed. by C. H. Firth and R. S. Rait. London: Wyman and Son, 1911. Vol. i., p. 26. September 2.

Whereas the distressed estate of Ireland, steeped in her own blood, and the distracted estate of England, threatened with a cloud of blood by the civil war, call for all possible means to appease and avert the Wrath of God, appearing in these judgments; among which Fasting and Prayer, having been often tried to be very effectual, having been lately and are still enjoined; and whereas public sports do not well agree with public calamities, nor public stage plays with the seasons of humiliation, this being an exercise of sad and pious solemnity, and the other being spectacles of pleasure, too commonly expressing lascivious mirth and levity: it is therefore thought fit and ordained, by the Lords and Commons in this parliament assembled, that while these sad causes and set times of humiliation do continue, public Stage Plays shall cease and be forborn, instead of which are recommended to the people of this land, the profitable and seasonable considerations of repentance, reconciliation and peace with God, which probably may produce outward peace and prosperity, and bring again times of joy and gladness to these nations.

THE GOOD YEOMAN (1642).

Source.—*The Holy State*, by Thomas Fuller, 1642. P. 116.

Is a gentleman in ore whom the next age may see refined, and is the wax capable of a gentle impression, when the prince shall stamp it. Wise Solon (who accounted Tellus the Athenian the most happy man for living privately on his own lands) would surely have pronounced the English yeomanry a fortunate condition, living in the temperate zone betwixt greatness and want, an estate of people almost peculiar to England. France and Italy are like a die which hath no points betwixt six and ace, Nobility and Peasantry. Their walls though high must needs be hollow, wanting filling stones. Indeed Germany hath her Boors like our Yeomen, but by a tyrannical appropriation of Nobility to some few ancient families, their yeomen are excluded from ever rising higher to clarify their bloods. In England the Temple of Honour is bolted against none who have passed through the Temple of Virtue, nor is a capacity to be gentle denied to our Yeoman, who thus behaves himself.

He wears Russet clothes but makes golden payment, having tin in his buttons and silver in his pockets. If he chance to appear in clothes above his rank, it is to grace some great man with his service, and then he blusheth at his own bravery. Otherwise he is the surest landmark where foreigners may take aim of the ancient English customs; the Gentry more shooting after foreign fashions.

In his house he is bountiful both to strangers and poor people. Some hold when hospitality died in England, she gave her last groan amongst the yeomen of Kent. And still at our yeoman's table you shall have as many joints as dishes. No meat disguised with strange sauces, no straggling joint of a sheep in the midst of a pasture of grass, beset with salads on every side, but solid substantial food, no servitors, (more nimble with their hands than the guests with their teeth) take away meat before stomachs [appetites] are taken away. Here you have that which in itself is good, made better by the store of it and best by the welcome to it.

He hath a great stroke in making a knight of the shire. Good reason, for he makes a whole line in the subsidy book, where whatsoever he is rated, he pays without any regret, not caring how much his purse is let blood, so it be

done by the advice of the physicians of the State. He seldom goes far abroad, and his credit stretcheth farther than his travel. He goes not to London, but *se defendo* to save himself of a fine being returned of a Jury, where seeing the King once, he prays for him ever afterwards.

In his own country he is a main man in Juries. Where if the judge please to open his eyes in matter of Law, he needs not to be led by the nose in matters of fact. He is very observant of the Judges *item*, where it followeth the truth *in primis*; otherwise (though not mutinous in a Jury) he cares not whom he displeaseth, so he pleaseth his own conscience. He improveth his land to a double value by his good husbandry. Some grounds that wept with water, or frowned with thorns, by draining the one and clearing the other, he makes both to laugh and sing with corn. By marl and limestones burnt he bettereth his ground, and his industry worketh miracles by turning stones into bread....

In time of famine he is the Joseph of the country, and keeps the poor from starving. Then he tameth his stacks of corn, which not his covetousness, but providence hath reserved for time of need, and to his poor neighbours abateth somewhat of the high price of the market. The neighbour gentry court him for his acquaintance, which he either modestly waiveth, or thankfully accepteth, but no way greedily desireth. He insults not the ruins of a decayed gentleman, but pities and relieves him; and as he is called Goodman, he desires to answer to the name and to be so indeed.

In war, though he serveth on foot, he is ever mounted on a high spirit; as being a slave to none and subject only to his own prince. Innocence and independence make a brave spirit, whereas otherwise one must ask his leave to be valiant, on whom he depends. Therefore if a state run up all to noblemen and gentlemen, so that the husbandmen be only mere labourers or cottagers (which one [Bacon] called but housed beggars) it may have good cavalry, but never good bands of foot so that their armies will be like those birds called Apodes, without feet, always only flying on their wings of horse. Wherefore to make good Infantry, it requireth men bred, not in a senile or indigent fashion, but in some free and plentiful manner. Wisely therefore did that knowing prince King Henry VII. provide laws for the increase of his yeomanry, that his kingdom should not be like to coppice woods, where the staddles being left too thick all runs to bushes and briars, and there's little clean underwood. For, enacting that houses used to

husbandry should be kept up with a competent proportion of land, he did secretly sow Hydra's teeth, whereby (according to the poet's fiction) should rise up armed men for the service of this kingdom.

[EXPERIENCES OF A VOLUNTEER \(1642\).](#)^[1]

Source.—*State Papers: Domestic*, 1641-1643. P. 398.

Nehemiah Wharton to George Willingham, Oct. 7, 1642.

This day a company of knights, gentlemen, and yeomen of the county of Hereford came to his Excellency [Essex], petitioners for strength to be sent speedily to Hereford; and forthwith we were commanded to draw out fifteen men out of every company in our regiments, in all about 900, with three troops of horse and nine pieces of ordnance, with which we marched, a forlorn hope, towards Hereford.... After we had marched 10 miles, we came to Bromyard, the weather wet and the way very foul. Here we got a little refreshment, and from hence marched 10 miles further to Hereford. But [it was] very late before we got thither; and by reason of the rain and snow, and extremity of cold, one of our soldiers died by the way; and it is wonderful we did not all perish, for the cowardly Cavaliers were within a few miles of us. In this poor condition coming to Hereford, the gates were shut against us, and for two hours we stood in dirt and water up to the mid-leg, for the city were all Malignants, save three which were Roundheads, and the Marquis of Hereford had sent them word the day before that they should in no wise let us in, or if they did, we would plunder their houses, murder their children, burn their bibles and utterly ruin all, and promised he would relieve them himself with all speed, for which cause the citizens were resolved to oppose us unto the death, and having in the City three pieces of ordnance, charged them with stones, nails, etc., and placed them against us, and we against them, resolving either to enter the city, or die before it. But the Roundheads in the City, one of them an alderman surnamed Lane, persuaded the silly Mayor, for so he is indeed, that his Excellency and all his forces were at hand, whereupon he opened unto us, and we entered the city at Byster's gate, but found the doors shut, many of the people with their children fled, and had enough to do to get a little quarter. But the poor Mayor, seeing he was so handsomely cozened, was not a little angry, for Hereford with all his forces, which fled from Sherborne, promised to visit them the day following. This night though wet and weary we were fain to guard the city.... Saturday our squadron watched at St. Owen's gate, which day I took an opportunity to view the city, which is well situate, and seated upon the river Wye, environed with a strong wall

better than any I have seen before, with five gates and a strong stone bridge of six arches, surpassing Worcester. In this city is the stateliest marketplace in the Kingdom, built with columns after the manner of the Exchange: the Minster every way exceeding that at Worcester; but the city in circuit not so large. The inhabitants are totally ignorant in the ways of God and much addicted to drunkenness and other vices, but principally to swearing, so that the children that have scarce learned to speak do universally swear stoutly. Many here speak Welsh. This day, our companies exercising in the fields at Worcester, one of the Lord General's soldiers shot at random, and with a brace of bullets shot one of his fellow-soldiers through the head, who immediately died. Sabbath day about the time of morning prayer, we went to the Minster, where the pipes played and the puppets sang so sweetly that some of our soldiers could not forbear dancing in the holy choir, whereat the Baalists were sore displeased. The anthem ended, they fell to prayer, and prayed devoutly for the King, the Bishops, etc.; and one of our soldiers with a loud voice said, "What, never a bit for the Parliament?" which offended them much more. Not satisfied with this human service, we went to divine, and passing by found shops open and men at work, to whom we gave some plain dehortations, and went to hear Mr. Sedgwick [the Army Chaplain], who gave us two famous sermons, which much affected the poor inhabitants, who wondering said they never heard the like before. And I believe them. The Lord move your hearts to commiserate their distresses and to send them some faithful and painful ministers; for the revenue of the college will maintain many of them. This even the Earl of Stamford, who is made governor of Hereford, entered the city with a regiment of foot and some troops of horse, and took up the Bishop's palace for his quarter and is resolved there to abide: whereupon on Monday morning we marched towards Worcester, and at the end of 10 miles came to Bromyard, where we quartered all night. This day his Excellency proclaimed that all soldiers that would set to digging should have twelve pence the day, and enter into pay presently. Tuesday we marched to Worcester, and were received with much joy, for the design was so desperate that our judicious friends never looked to see us again....

FOOTNOTE:

[\[1\]](#) Nehemiah Wharton, a Londoner who volunteered and joined the army of Essex. He writes to his former employer, a city merchant, to whom he had been apprenticed.

CROMWELL TO CRAWFORD (1643).

Source.—Carlyle, *Cromwell's Letters and Speeches*, March 10, 1643.

SIR,

The complaints you preferred to my Lord against your Lieutenant-Colonel, both by Mr. Lee and your own Letters, have occasioned his stay here:—my Lord being so employed, in regard of many occasions which are upon him, that he hath not been at leisure to hear him make his defence which, in pure justice, ought to be granted him or any man before a judgment be passed upon him.

During his abode here and absence from you, he hath acquainted me what a grief it is to him to be absent from his charge, especially now the regiment is called forth to action: and therefore, asking of me my opinion, I advised him speedily to repair unto *you*. Surely you are not well advised thus to turn off one so faithful to the Cause, and so able to serve you as this man is. Give me leave to tell you, I cannot be of your judgment; cannot understand, if a man notorious for wickedness, for oaths, for drinking, hath as great a share in your affection as one who fears an oath, who fears to sin,—that this doth commend your election of men to serve as fit instruments in this work!—

Ay, but the man "is an Anabaptist." Are you sure of that? Admit he be, shall that render him incapable to serve the Public? "He is indiscreet." It may be so, in some things: we have all human infirmities. I tell you, if you had none but such "indiscreet men" about you, and would be pleased to use them kindly, you would find as good a fence to you as any you have yet chosen.

Sir, the State, in choosing men to serve it, takes no notice of their opinions; if they be willing faithfully to serve it,—that satisfies. I advised you formerly to bear with men of different minds from yourself: if you had done it when I advised you to it, I think you would not have had so many stumbling blocks in your way. It may be you judge otherwise; but I tell you my mind.—I desire you would receive this man into your favour and good opinion. I believe, if he follow my counsel, he will deserve no other but respect from you. Take heed of being sharp, or too easily sharpened by others, against those to whom you can object little but that they square not

with you in every opinion concerning matters of religion. If there be any other offence to be charged upon him,—that must in a judicial way receive determination. I know you will not think it fit my Lord should discharge an Officer of the Field but in a regulate way. I question whether you or I have any precedent for that.

I have not further to trouble you:—but rest,

Your humble servant,

OLIVER CROMWELL.

SIR WILLIAM WALLER TO SIR RALPH HOPTON (1643).

Source.—*Clarendon State Papers*. Vol. ii., p. 155.

SIR,

The experience I have had of your worth and the happiness I have enjoyed in your friendship are wounding considerations to me when I look upon this present distance between us. Certainly, my affections to you are so unchangeable, that hostility itself cannot violate my friendship to your person. But I must be true to the cause wherein I serve. The old limitation *usque ad aras*, holds still; and where my conscience is interested, all other obligations are swallowed up. I should most gladly wait upon you, according to your desire, but that I look upon you as engaged in that party beyond the possibility of a retreat, and consequently incapable of being wrought upon by any persuasion. And I know the conference could never be so close between us, but that it would take wind, and receive a construction to my dishonour. That great God who is the searcher of my heart, knows with what a sad sense I go on upon this service, and with what a perfect hatred I detest this war without an enemy. But I look upon it as sent from God; and that is enough to silence all passion in me. The God of Heaven in his good time send us the blessing of peace, and in the mean time fit us to receive it. We are both upon the stage, and must act such parts as are assigned us in this tragedy. Let us do it in a way of honour, and without personal animosities....

THE WESTMINSTER ASSEMBLY (1644).

Source.—*Letters and Journals of R. Baillie*. Edinburgh: the Bannatyne Club, 1823. Vol. ii., p. 117.

R. Baillie to (?) David Dickson in Scotland, despatched Jan. 1, 1644.

REVEREND AND BELOVED BROTHER,

... In the Grand Committee this afternoon we have finally agreed on a draft of a letter for the churches abroad to inform them of our condition, which shortly you will see in print. Also we have begun one business, (very handsomely I trust,) of great consequence. In the time of this anarchy the divisions of the people weekly do much increase: the Independent party grows; but the Anabaptists more; and the Antinomians most. The Independents being most able men, and of great credit, fearing no less than banishment from their native country if Presbyteries were erected, are watchful that no conclusion be taken for their prejudice. It was my advice which Mr. Henderson presently applauded, and gave me thanks for it, to eschew a public rupture with the Independents, till we were more able for them. As yet a Presbytery to this people is conceived to be a strange monster. It was our good therefore to go on hand in hand, so far as we did agree, against the common enemy: hoping that in our differences, when we behooved to come to them, God would give us light; in the meantime we would assay to agree upon the Directory of Worship, wherein we expect no small help from these men, to abolish the Great Idol of England, the Service-Book, and to erect in all the parts of worship a full conformity to Scotland in all things worthy to be spoken of.... This day was proposed by Mr. Solicitor, seconded by Sir Harry Vane, my Lord Say and my Lord Wharton at our Committee and assented to by all, that a sub-committee of five, without exclusion of any of the committee, shall meet with us of Scotland for preparing a Directory of Worship to be communicated to the Grand Committee and by them to the Assembly. Also there is a paper drawn up by Mr. Marshall, in the name of the chief men of the Assembly and the chief of the Independents, to be communicated on Monday to the Assembly and by their advice to be published, declaring the Assembly's mind to settle, with all speed is possible, all the questions needful about religion: to reform according to the word of God all abuses: and to give to every congregation

a person, as their due; whereupon loving and pithy exhortations are framed to the people, in the name of the men who are of the greatest credit, to wait patiently for the Assembly's mind, and to give over that most unreasonable purpose of their own reformatations and gathering of congregations.... Further ways are in hand, which if God bless, the Independents will either come to us or have very few to follow them. As for the other sects, wise men are in opinion that God's favour in this Assembly will make them vanish. We had great need of your prayers. On Wednesday Mr. Pym was carried from his house to Westminster on the shoulders, as the fashion is, of the chief men of the Lower House, all the House going in procession before him, and before them the Assembly of Divines. Marshall had a most eloquent and pertinent funeral sermon, which we would not hear, for funeral sermons we must have away, with the rest. The Parliament has ordered to pay his debt, and to build him, in the chapel of Henry VII., a most stately monument.

... All our company, praise to God, are in good health and cheerfulness. I must break off: for I must preach to-morrow, as also my other colleagues.

MILTON ON LIBERTY (1644).

Source.—Milton, *Prose Works*. Ed. Bohn. Vol. ii., p. 90. *Areopagitica*, 1644.

Lords and commons of England, consider what nation it is whereof ye are, and whereof ye are the governors: a nation not slow and dull, but of a quick ingenious and piercing spirit; acute to invent, subtile and sinewy to discourse not beneath the reach of any point the highest that human capacity can soar to.... Now once again by all concurrence of signs and by the general instinct of holy and devout men, as they daily and solemnly express their thoughts, God is decreeing to begin some new and great period in His church; even to the reformation of reformation itself; what does He then but reveal Himself to His servants, and as His manner is, first to His Englishmen? I say, as His manner is, first to us, though we mark not the method of His counsels, and are unworthy. Behold now this vast city; a city of refuge, the mansion-house of liberty, encompassed and surrounded with His protection: the shop of war hath not there more anvils and hammers working, to fashion out the plates and instruments of armed justice in defence of beleaguered truth, than there be pens and heads there, sitting by their studious lamps, musing, searching, revolving new notions and ideas wherewith to present, as with their homage and their fealty, the approaching Reformation; others as fast reading, trying all things, assenting to the force of reason and conviction. What could a man require more from a nation so pliant and so prone to seek after knowledge? What wants there to such a toward and pregnant soil but wise and faithful labourers, to make a knowing people a nation of prophets, of sages, and of worthies? We reckon more than five months yet to harvest: there need not be five weeks; had we but eyes to lift up, the fields are white already. Where there is much desire to learn, there of necessity will be much arguing, much writing, many opinions; for opinion in good men is but knowledge in the making. Under these fantastic terrors of sect and schism, we wrong the earnest and zealous thirst after knowledge and understanding which God hath stirred up in this city. What some lament, we rather should rejoice at, should rather praise this pious forwardness among men, to reassume the ill-deputed care of their religion into their own hands again. A little generous prudence, a little forbearance of one another, and some grain of charity, might win all these diligences to join and unite into one general and brotherly search after truth;

could we but forego this prelatical tradition, of crowding free consciences and Christian liberties into canons and precepts of men. I doubt not, if some great and worthy stranger should come among us, wise to discern the mould and temper of a people, and how to govern it, observing the high hopes and aims, the diligent alacrity of our extended thoughts and reasonings in the pursuance of truth and freedom, but that he would cry out as Pyrrhus did, admiring the Roman docility and courage, "If such were my Epirots, I would not despair the greatest design that could be attempted to make a church or kingdom happy." Yet these are the men cried out against for schismatics and sectaries, as if, while the temple of the Lord was building, some cutting, some squaring the marble, others hewing the cedars, there should be a sort of irrational men, who could not consider there must be many schisms and many dissections made in the quarry and in the timber, ere the house of God can be built. And when every stone is laid artfully together, it cannot be united into a continuity, it can but be contiguous in this world; neither can every piece of building be of one form; nay rather the perfection consists in this, that out of many moderate varieties and brotherly dissimilitudes that are not vastly disproportional, arises the goodly and the gracious symmetry that commends the whole pile and structure.... Methinks I see in my mind a noble and puissant nation rousing herself like a strong man after sleep and shaking her invincible locks; methinks I see her as an eagle mewing her mighty youth, and kindling her undazzled eyes at the full midday beam; purging and unscaling her long abused sight at the fountain itself of heavenly radiance; while the whole noise of timorous and flocking birds, with those also that love the twilight, flutter about, amazed at what she means, and in their envious gabble would prognosticate a year of sects and schisms.

What should you do, then, should ye suppress all this flowery crop of knowledge and new light sprung up and yet springing daily in this city? Should ye set up an oligarchy of twenty engrossers over it, to bring a famine upon our minds again, when we shall know nothing but what is measured to us by their bushel? Believe it, lords and commons! they who counsel you to such a suppressing do as good as bid ye suppress yourselves; and I will soon show how. If it be desired to know the immediate cause of all this free writing and free speaking, there cannot be assigned a truer than your own mild and free and humane government; it is the liberty, lords and commons, which your own valorous and happy counsels have purchased us;

liberty, which is the nurse of all great arts: this it is which hath rarefied and enlightened our spirits like the influence of Heaven; this is that which hath enfranchised, enlarged, and lifted up our apprehensions degrees above themselves. Ye cannot make us now less capable, less knowing, less eagerly pursuing of the truth, unless ye first make yourselves, that made us so, less the lovers, less the founders of our true liberty. We cannot grow ignorant again, brutish, formal and slavish, as ye found us: but you then must first become that which ye cannot be, oppressive, arbitrary, and tyrannous; as they were from whom ye have freed us. That our hearts are now more capacious, our thoughts more erected to the search and expectation of greatest and exactest things, is the issue of your own virtue propagated in us; ye cannot suppress that unless ye reinforce an abrogated and merciless law, that fathers may despatch at will their own children.... Give me the liberty to know, to utter, and to argue freely according to conscience, above all liberties.

MONTROSE TO CHARLES I. (1645).

Source.—*Memorials of Montrose*. Edinburgh: The Maitland Club, 1841. Vol. ii., p. 175.

MAY IT PLEASE YOUR SACRED MAJESTY:—

The last dispatch I sent your Majesty word by my worthy friend, and your Majesty's brave servant, Sir William Rollock, from Kintore, near Aberdeen, dated the 14th of September last; wherein I acquainted your Majesty with the good success of your arms in this kingdom, and of the battles the justice of your cause has won over your obdurate rebel subjects. Since Sir William Rollock went I have traversed all the north of Scotland up to Argyle's country; who durst not stay my coming, or I should have given your Majesty a good account of him ere now. But at last I have met with him, yesterday, to his cost; of which your gracious Majesty be pleased to receive the following particulars.

After I had laid waste the whole country of Argyle, and brought off provisions, for my army, of what could be found, I received information that Argyle was got together with a considerable army, made up chiefly of his own clan, and vassals and tenants, with others of the rebels that joined him, and that he was at Inverlochy, where he expected the Earl of Seaforth, and the sept of the Frasers, to come up to him with all the forces they could get together. Upon this intelligence I departed out of Argyleshire, and marched through Lorn, Glencow, and Aber, till I came to Lochness, my design being to fall upon Argyle before Seaforth and the Frasers could join him. My march was through inaccessible mountains, where I could have no guides but cow-herds, and they scarce acquainted with a place but six miles from their own habitations. If I had been attacked but with one hundred men in some of these passes, I must have certainly returned back, for it would have been impossible to force my way, most of the passes being so strait that three men could not march abreast. I was willing to let the world see that Argyle was not the man his Highlandmen believed him to be, and that it was possible to beat him in his own Highlands. The difficultest march of all was over the Lochaber mountains, which we at last surmounted, and came upon the back of the enemy when they least expected us, having cut off some scouts we met about four miles from Inverlochy. Our van came within view of them about five o'clock in the afternoon, and we made a halt till our rear was got up, which could not be done till eight at night. The

rebels took the alarm and stood to their arms, as well as we, all night, which was moonlight, and very clear. There were some few skirmishes between the rebels and us all the night, and with no loss on our side but one man. By break of day I ordered my men to be ready to fall on upon the first signal, and I understand since, by the prisoners, the rebels did the same. A little after the sun was up, both armies met, and the rebels fought for some time with great bravery, the prime of the Campbells giving the first onset, as men that deserved to fight in a better cause. Our men, having a nobler cause, did wonders, and came immediately to push of pike, and dint of sword, after their first firing. The rebels could not stand it, but, after some resistance at first, began to run, whom we pursued for nine miles together, making a great slaughter, which I would have hindered, if possible, that I might save your Majesty's misled subjects, for well I know your Majesty does not delight in their blood, but in their returning to their duty. There were at least fifteen hundred killed in the battle and the pursuit, among whom there are a great many of the most considerable gentlemen of the name of Campbell, and some of them nearly related to the Earl. I have saved and taken prisoners several of them, that have acknowledged to me their fault and lay all the blame on their Chief. Some gentlemen of the Lowlands, that had behaved themselves bravely in the battle, when they saw all lost, fled into the old castle, and, upon their surrender, I have treated them honourably, and taken their parole never to bear arms against your Majesty.

We have of your Majesty's army about two hundred wounded, but I hope few of them dangerously. I can hear but of four killed, and one whom I cannot name to your Majesty but with grief of mind, Sir Thomas Ogilvy, a son of the Earl of Airly's, of whom I writ to your Majesty in my last. He is not yet dead, but they say he cannot possibly live, and we give him over for dead. Your Majesty had never a truer servant, nor there never was a braver, honester gentleman. For the rest of the particulars of this action, I refer myself to the bearer, Mr. Hay, whom your Majesty knows already, and therefore I need not recommend him.

Now, Sacred Sir, let me humbly intreat your Majesty's pardon if I presume to write you my poor thoughts and opinion about what I heard by a letter I received from my friends in the south, last week, as if your Majesty was entering into a treaty with your rebel Parliament in England. The success of your arms in Scotland does not more rejoice my heart, as that

news from England is like to break it. And whatever come of me, I will speak my mind freely to your Majesty, for it is not mine, but your Majesty's interest I seek.

When I had the honour of waiting upon your Majesty last, I told you at full length what I fully understood of the designs of your Rebel subjects in both kingdoms, which I had occasion to know as much as any one whatsoever; being at that time, as they thought, entirely in their interest. Your Majesty may remember how much you said you were convinced I was in the right in my opinion of them. I am sure there is nothing fallen out since to make your Majesty change your judgment in all those things I laid before your Majesty at that time. The more your Majesty grants, the more will be asked; and I have too much reason to know that they will not rest satisfied with less than making your Majesty a King of straw. I hope the news I have received about a treaty may be a mistake, and the rather that the letter wherewith the Queen was pleased to honour me, dated the 30th of December, mentions no such thing. Yet I know not what to make of the intelligence I received, since it comes from Sir Robert Spottiswood, who writes it with a great regret; and it is no wonder, considering no man living is a more true subject to your Majesty than he. Forgive me, Sacred Sovereign, to tell your Majesty that, in my poor opinion, it is unworthy of a King to treat with Rebel subjects, while they have the sword in their hands. And though God forbid I should stint your Majesty's mercy, yet I must declare the horror I am in when I think of a treaty, while your Majesty and they are in the field with two armies, unless they disband, and submit themselves entirely to your Majesty's goodness and pardon.

As to the state of affairs in this Kingdom, the bearer will fully inform your Majesty in every particular. And give me leave, with all humility, to assure your Majesty that, through God's blessing, I am in the fairest hopes of reducing this kingdom to your Majesty's obedience. And, if the measures I have concerted with your other loyal subjects fail me not, which they hardly can, I doubt not before the end of this summer I shall be able to come to your Majesty's assistance with a brave army, which, backed with the justice of your Majesty's cause, will make the Rebels in England, as well as in Scotland, feel the just rewards of Rebellion. Only give me leave, after I have reduced this country to your Majesty's obedience, and *conquered from Dan to Beersheba*, to say to your Majesty then, as David's

General did to his master, "*Come thou thyself, lest this country be called by my name.*" For in all my actions I aim only at your Majesty's honour and interest, as becomes one that is to his last breath, may it please your Sacred Majesty,—

Your Majesty's most humble, most faithful, and

most obedient Subject and Servant,

MONTROSE.

INVERLOCHY IN LOCHABER,
February 3rd, 1645.

CHARLES AND HENRIETTA MARIA (1646).

Source.—Camden Society's Publications. Vol. lix., p. 45.

NEWCASTLE,
June 10th, 1646.

DEAR HEART,

These two last weeks I heard not from thee, nor any about thee, which hath made my present condition the more troublesome, but I expect daily the contentment of hearing from thee. Indeed I have need of some comfort, for I never knew what it was to be barbarously baited before, and these five or six days last have much surpassed, in rude pressures against my conscience, all the rest since I came to the Scotch army; for, upon I know not what intelligence from London, nothing must serve but my signing the covenant (the last was, my commanding all my subjects to do it), declaring absolutely, and without reserve, for Presbyterian government, and my receiving the Directory in my family, with an absolute command for the rest of the kingdom; and if I did not all this, then a present agreement must be made with the parliament, without regard of me, for they said that otherways they could not hope for peace or a just war. It is true they gave me many other fair promises in case I did what they desired (and yet for the militia they daily give ground); but I answered them, that what they demanded was absolutely against my conscience, which might be persuaded, but would not be forced by anything they could speak or do. This was the sum of divers debates and papers between us, of which I cannot now give thee an account. At last I made them be content with another message to London, requiring an answer to my former, with an offer to go thither upon honourable and just conditions. Thus all I can do is but delaying of ill, which I shall not be able to do long without assistance from thee. I cannot but again remember thee, that there was never man so alone as I, and therefore very much to be excused for the committing of any error, because I have reason to suspect everything that these advised me, and to distrust mine own single opinion, having no living soul to help me. To conclude, all the comfort I have is in thy love and a clear conscience.

I know the first will not fail me, nor (by the grace of God) the other. Only I desire thy particular help, that I should be as little vexed as may be; for, if

thou do not, I care not much for others. I need say no more of this, nor will at this time, but that I am eternally thine.

CHARLES R.

CROMWELL AND LUDLOW (1646).

Source.—*The Memoirs of Edmund Ludlow*. Ed. C. H. Firth. Oxford, 1894. Vol. i., pp. 144, 145.

In the meantime I observed that another party was not idle: for, walking one morning with Lieutenant-General Cromwell in Sir Robert Cotton's garden, he inveighed bitterly against them, saying in a familiar way to me, "If thy father were alive, he would let some of them hear what they deserve," adding further "that it was a miserable thing to serve a Parliament, to whom let a man be never so faithful, if one pragmatistical fellow amongst them rise up and asperse him, he shall never wipe it off. Whereas," said he, "when one serves under a general, he may do as much service, and yet be free from all blame and envy." This text, together with the comment that his after-actions put upon it, hath since persuaded me that he had already conceived the design of destroying the civil authority, and setting up of himself; and that he took that opportunity to feel my pulse, whether I were a fit instrument to be employed by him to those ends. But having replied to his discourse, that we ought to perform the duty of our stations, and trust God with our honour, power, and all that is dear to us, not permitting any such considerations to discourage us from the prosecution of our duty, I never heard any more from him upon that point.

[AN ARMY DEBATE \(1647\).](#)

Source.—*Clarke Papers*, Camden Society's Publications. Vol. i., p. 301. Putney, October 29, 1647.

AT A MEETING OF THE OFFICERS FOR CALLING UPON GOD.

Part of the Debate on the Agreement of the People, First article, "That the people of England being at this day very unequally distributed by Counties, Cities and Boroughs for the election of their Deputies in Parliament, ought to be more indifferently proportioned according to the number of the inhabitants."

Col. Rainborough. Really I think that the poorest he that is in England hath a life to live as the greatest he; and therefore truly, Sir, I think it's clear that every man that is to live under a Government ought first by his own consent to put himself under that Government....

Commissary Ireton. Give me leave to tell you, that if you make this the rule I think you must fly for refuge to an absolute natural Right, and you must deny all Civil Right.... For my part I think it is no right at all. I think that no person hath a right to an interest or share in the disposing or determining of the affairs of the Kingdom, and in choosing those that shall determine what laws we shall be ruled by here, no person hath a right to this that hath not a permanent fixed interest in this Kingdom.... We talk of birthright. Truly by birthright there is thus much claim. Men may justly have by birthright, by their very being born in England, that we shall not seclude them out of England, that we shall not refuse to give them air and place and ground and the freedom of the highways and other things, to live amongst us.... That I think is due to a man by birth. But that by a man's being born here he shall have a share in that power that shall dispose of the lands here, and of all things here, I do not think it a sufficient ground. I am sure if we look upon ... that which is most radical and fundamental and which if you take away there is no man hath any land, any goods, any civil interest, that is this; that those that choose the representors for the making of laws by which this state and kingdom are to be governed, are the persons who taken together do comprehend the local interest of this kingdom: that is, the persons in whom all land lies, and those in Corporations in whom all trading lies....

Rainborough. Truly, Sir, I am of the same opinion I was; and am resolved to keep it till I know reason why I should not. I do think the main cause why Almighty God gave men reason, it was, that they should make use of that reason. Half a loaf is better than none if a man be an hungry, yet I think there is nothing that God hath given a man that any else can take from him. I do not find anything in the law of God, that a Lord shall choose 20 burgesses and a gentleman but two, and a poor man shall choose none. But I do find that all Englishmen must be subject to English laws, and I do verily believe that there is no man but will say that the foundation of all law lies in the people....

Ireton. I wish we may all consider of what right you will challenge, that all people should have right to elections. Is it by the right of nature? By that same right of nature by which you can say one man hath an equal right with another to the choosing of him that shall govern him—by the same right of nature, he hath an equal right in any goods he sees; meat, drink, clothes, to take and use them for his sustenance. He hath a freedom to the land, to exercise it, till it; he hath the same freedom to anything that anyone doth account himself to have any property in.... Since you cannot plead it by anything but the law of nature, I would fain have any man show me their bounds, where you will end, and why you should not take away all property?

Rainborough. I wish we were all true hearted, and that we did all carry ourselves with integrity. For my part, I think you do not only yourselves believe that we are inclining to anarchy, but you would make all men believe that. That there is property the Law of God says, else why hath God made that law, "Thou shalt not steal"? If I have no interest in the Kingdom I must suffer by all their laws, be they right or wrong. I am a poor man, therefore I must be oppressed....

Cromwell. I know nothing but this, that they that are the most yielding have the greatest reason; but really, Sir, this is not right as it should be. No man says you have a mind to anarchy, but the consequence of this rule tends to anarchy, must end in anarchy, for where is there any bound or limit set, if you take away this limit, that men that have no interest but the interest of breathing, shall have no voice in elections? Therefore I am confident on it that we should not be so hot one with another....

Rainborough. I deny that there is property, to a Lord, to a Gentleman, to any man more than another in the Kingdom of England. I would fain know what we have fought for. This is the old law of England, and that which enslaves the people of England, that they should be bound by laws in which they have no voice at all....

Mr. Sexby. We have engaged in this Kingdom and ventured our lives, and it was all for this: to recover our birthrights and privileges as Englishmen, and by the arguments used there is none. There are many thousands of us soldiers that have ventured our lives: we have had little property in the Kingdom as to our estates; yet we have had a birthright. It seems now, unless a man hath a fixed estate in this Kingdom, he hath no right in this kingdom. I wonder we were so much deceived. I shall tell you in a word my resolution. I am resolved to give my birthright to none. I do think the poor and meaner of this kingdom have been the means of the preservation of this kingdom....

Ireton. For my part, rather than I will make a disturbance to a good Constitution of a kingdom wherein I may live in godliness and honesty and peace and quietness, I will part with a great deal of my birthright. I will part with my own property rather than I will be the man that shall make a disturbance in the Kingdom for my property....

Rainborough. But I would fain know what the poor soldier hath fought for all this while? He hath fought to enslave himself, to give power to men of riches, men of estates, to make him a perpetual slave. We do find in all presses that go forth none must be pressed that are freehold men. When these Gentlemen fall out among themselves they shall press the poor scrubs to come and kill them.

Cromwell. I confess I am most dissatisfied with that I heard Mr. Sexby speak of any man here, because it did savour so much of will. But I desire that all of us may decline that, and if we meet here really to agree to that which is for the safety of the Kingdom, let us not spend so much time in such debates as these are. If we think to bring it to an issue this way I know our debates are endless, and I think if you do desire to bring this to a result it were well if we may but resolve upon a Committee. I say it again, if I cannot be satisfied to go so far as these Gentlemen ... I shall freely and willingly withdraw myself, and I hope to do it in such manner that the Army

shall see that I shall by my withdrawing satisfy the interest of the Army, the public interest of the Kingdom, and those ends these men aim at.

THE AGREEMENT OF THE PEOPLE (1647).

Source.—British Museum Pamphlets. E. 412.21.

AN AGREEMENT OF THE PEOPLE FOR A FIRM AND PRESENT PEACE UPON
GROUNDS OF COMMON RIGHT.

Having by our late labours and hazards made it appear to the world at how high a rate we value our just freedom, and God having so far owned our cause as to deliver the enemies thereof into our hands, we do now hold ourselves bound in mutual duty to each other to take the best care we can for the future to avoid both the danger of returning into a slavish condition and the chargeable remedy of another war; for, it cannot be imagined that so many of our countrymen would have opposed us in this quarrel if they had understood their own good, so may we safely promise to ourselves that, when our common rights and liberties shall be cleared, their endeavours will be disappointed that seek to make themselves our masters.

Since, therefore, our former oppressions and scarce-yet-ended troubles have been occasioned, either by want of frequent national meetings in Council, or by rendering those meetings ineffectual, we are fully agreed and resolved to provide that hereafter our representatives be neither left to an uncertainty for the time nor made useless to the ends for which they are intended.

In order whereunto we declare:—

I.

That the people of England, being at this day very unequally distributed by Counties, Cities, and Boroughs, ought to be more indifferently proportioned according to the number of the inhabitants; the circumstances whereof for number, place, and manner are to be set down before the end of this present Parliament.

II.

That, to prevent the many inconveniences apparently arising from the long continuance of the same persons in authority, this present Parliament be dissolved upon the last day of September which shall be in the year of our Lord, 1648.

III.

That the people do, of course, choose themselves a Parliament once in two years, viz. upon the first Thursday in every 2d March, after the manner as shall be prescribed before this present Parliament end, to begin to sit upon the first Thursday in April following, at Westminster or such other place as shall be appointed from time to time by the preceding Representatives, and to continue till the last day of September then next ensuing, and no longer.

IV.

That the power of this, and all future Representatives of this Nation, is inferior only to theirs who choose them, and doth extend, without the consent or concurrence of any other person or persons, to the enacting, altering, and repealing of laws, to the erecting and abolishing of offices and courts, to the appointing, removing, and calling to account magistrates and officers of all degrees, to the making war and peace, to the treating with foreign States, and, generally, to whatsoever is not expressly or impliedly reserved by the represented to themselves.

Which are as followeth.

1. That matters of religion and the ways of God's worship are not at all entrusted by us to any human power, because therein we cannot remit or exceed a tittle of what our consciences dictate to be the mind of God without wilful sin: nevertheless the public way of instructing the nation (so it be not compulsive) is referred to their discretion.

2. That the matter of impressing and constraining any of us to serve in the wars is against our freedom; and therefore we do not allow it in our Representatives; the rather, because money (the sinews of war), being always at their disposal, they can never want numbers of men apt enough to engage in any just cause.

3. That after the dissolution of this present Parliament, no person be at any time questioned for anything said or done in reference to the late public differences, otherwise than in execution of the judgments of the present Representatives or House of Commons.

4. That in all laws made or to be made every person may be bound alike, and that no tenure, estate, charter, degree, birth, or place do confer any

exemption from the ordinary course of legal proceedings whereunto others are subjected.

5. That as the laws ought to be equal, so they must be good, and not evidently destructive to the safety and well-being of the people.

These things we declare to be our native rights, and therefore are agreed and resolved to maintain them with our utmost possibilities against all opposition whatsoever; being compelled thereunto not only by the examples of our ancestors, whose blood was often spent in vain for the recovery of their freedoms, suffering themselves through fraudulent accommodations to be still deluded of the fruit of their victories, but also by our own woeful experience, who, having long expected and dearly earned the establishment of these certain rules of government, are yet made to depend for the settlement of our peace and freedom upon him that intended our bondage and brought a cruel war upon us.

THE SENTENCE ON THE KING (1648-49).

(EXCERPT.)

Source.—Rushworth. Vol. vi., p. 1419.

Now, therefore, upon serious and mature deliberation of the premises, and consideration had of the notoriety of the matters of fact charged upon him as aforesaid, this Court is in judgment and conscience satisfied that he, the said Charles Stuart, is guilty of levying war against the said Parliament and people, and maintaining and continuing the same; for which in the said charge he stands accused, and by the general course of his government, counsels, and practices, before and since this Parliament began (which have been and are notorious and public, and the effects whereof remain abundantly upon record) this Court is fully satisfied in their judgments and consciences, that he has been and is guilty of the wicked design and endeavours in the said charge set forth; and that the said war hath been levied, maintained, and continued by him as aforesaid, in prosecution, and for accomplishment of the said designs; and that he hath been and is the occasioner, author and continuer of the said unnatural, cruel, and bloody wars, and therein guilty of high treason, and of the murders, rapines, burnings, spoils, desolations, damage, and mischief to this nation acted and committed in the said war, and occasioned thereby. For all which treasons and crimes this Court doth adjudge that he, the said Charles Stuart, as a tyrant, traitor, murderer, and public enemy to the good people of this nation, shall be put to death by the severing of his head from his body.

CHARLES I.'S CHARACTER (1649).

Source.—Clarendon, *History of the Rebellion*. Book XI., §§ 239-243.

To speak first of his private qualifications as a man, before the mention of his princely and royal virtues: he was, if ever any, the most worthy of the title of an honest man; so great a love of justice, that no temptation could dispose him to a wrongful action, except it was so disguised to him that he believed it to be just. He had a tenderness and compassion of nature, which restrained him from ever doing a hard-hearted thing; and therefore he was so apt to grant pardons to malefactors, that the judges of the land represented the damage and insecurity to the public, that flowed from such his indulgence. And then he restrained himself from pardoning either murders or highway robberies, and quickly discerned the fruits of his severity by a wonderful reformation of those enormities. He was very punctual and regular in his devotions; he was never known to enter upon his recreations or sports, though never so early in the morning, before he had been at public prayers, so that on hunting days his chaplains were bound to a very early attendance. He was likewise very strict in observing the hours of his private cabinet devotions, and was so severe an exactor of gravity and reverence in all mention of religion, that he could never endure any light or profane word in religion, with what sharpness of wit soever it was covered; and though he was well pleased and delighted with reading verses made upon any occasion, no man durst bring before him anything that was profane or unclean. That kind of wit had never any countenance then. He was so great an example of conjugal affection, that they that did not imitate him in that particular did not brag of their liberty: and he did not only permit, but direct his bishops to prosecute those scandalous vices, in the ecclesiastical courts, against persons of eminence and near relation to his service.

His kingly virtues had some mixture and alloy, that hindered them from shining in full lustre, and from producing those fruits they should have been attended with. He was not in his nature very bountiful, though he gave very much. This appeared more after the Duke of Buckingham's death, after which those showers fell very rarely: and he paused too long in giving, which made those to whom he gave less sensible of the benefit. He kept State to the full, which made his Court very orderly; no man presuming to

be seen in a place where he had no pretence to be. He saw and observed men long before he received any about his person; and did not love strangers, nor very confident men. He was a patient hearer of causes, which he frequently accustomed himself to at the council board, and judged very well, and was dextrous in the mediating part: so that he often put an end to causes by persuasion, which the stubbornness of men's humours made dilatory in courts of justice.

He was very fearless in his person, but not very enterprising. He had an excellent understanding, but was not confident enough of it; which made him oftentimes change his opinion for a worse, and follow the advice of men that did not judge so well as himself. This made him more irresolute than the conjuncture of his affairs would admit: if he had been of a rougher and more imperious nature he would have found more respect and duty. And his not applying some severe cures to approaching evils proceeded from the lenity of his nature, and the tenderness of his conscience, which, in all cases of blood, made him choose the softer way, and not hearken to severe counsels how reasonably soever urged. This only restrained him from pursuing his advantage in the first Scots expedition, when, humanly speaking, he might have reduced that nation to the most slavish obedience that could have been wished. But no man can say he had then many who advised him to it, but the contrary, by a wonderful indisposition all his council had to fighting, or any other fatigue. He was always an immoderate lover of the Scottish nation, having not only been born there, but educated by that people and besieged by them always, having few English about him till he was king; and the major number of his servants being still of that nation, who he thought could never fail him. And among these, no man had such an ascendant over him, as Duke Hamilton had.

As he excelled in all other virtues, so in temperance he was so strict, that he abhorred all debauchery to that degree, that, at a great festival solemnity, where he once was, when very many of the nobility of the English and Scots were entertained, being told by one who withdrew from thence, what vast draughts of wine they drank, and "that there was one earl who had drunk most of the rest down, and was not himself moved or altered," the King said, "that he deserved to be hanged," and that earl coming shortly after into the room where his majesty was, in some gaiety, to show how

unhurt he was from that battle, the king sent one to bid him withdraw from his Majesty's presence; nor did he in some days after appear before him.

So many miraculous circumstances contributed to his ruin that men might well think that heaven and earth and the stars designed it. Though he was, from the first declension of his power, so much betrayed by his own servants, that there were very few who remained faithful to him, yet that treachery preceded not from any treasonable purpose to do him any harm, but from particular animosities against other men. And afterwards the terror all men were under of the Parliament, and the guilt they were conscious of themselves, made them watch all opportunities to make themselves gracious to those who could do them good; and so they became spies upon their master, and from one piece of knavery were hardened and confirmed to undertake another; till at last they had no hope of preservation but by the destruction of their master. And after all this, when a man might reasonably believe that less than a universal defection of three nations could not have reduced a great king to so ugly a fate, it is most certain that, in that very hour when he was thus wickedly murdered in the sight of the sun, he had as great a share in the hearts and affections of his subjects in general, was as much beloved, esteemed, and longed for by the people in general of the three nations, as any of his predecessors had ever been. To conclude, he was the worthiest gentleman, the best friend, the best husband, the best father, and the best Christian, that the age in which he lived had produced. And if he were not the best king, if he were without some parts and qualities which have made some kings great and happy, no other prince was ever so unhappy who was possessed of half his virtues and endowments, and so much without any kind of vice.

THE DIGGERS (1649).

Source.—Whitelocke, *Memorials*. P. 396, folio edition, 1732.

April.—The Council of State had intelligence of new Levellers at St. *Margaret's Hill*, near *Cobham* in *Surrey*, and at St. *George's Hill*, and that they digged the Ground, and sowed it with Roots and Beans; one *Everard*, once of the Army, and who terms himself a Prophet, is the chief of them; and they were about thirty Men, and said that they should be shortly four thousand.

They invited all to come in and help them, and promised them Meat, Drink, and Clothes; they threaten to pull down Park Pales, and to lay all open, and threaten the Neighbours that they will shortly make them all come up to the Hills and work.

The General sent two Troops of Horse to have account of them.

[A few days later (p. 397).]

Everard and Winstanley, the chief of those that digged at St. George's Hill in Surrey, came to the General and made a large Declaration to justify their Proceedings.

Everard said, he was of the Race of the Jews, that all the Liberties of the People were lost by the coming in of William the Conqueror, and that ever since, the People of God had lived under Tyranny and Oppression worse than that of our Forefathers under the Egyptians.

But now the time of the Deliverance was at hand, and God would bring his People out of this Slavery, and restore them to their Freedom in enjoying the Fruits and Benefits of the Earth.

And that there had lately appeared to him a Vision, which bad him arise and dig and plow the Earth, and receive the Fruits thereof, that their Intent is to restore the Creation to its former condition.

That as God had promised to make the barren Land fruitful, so now what they did, was to renew the ancient Community of enjoying the Fruits of the Earth, and to distribute the Benefit thereof to the poor and needy, and to feed the hungry and clothe the naked.

That they intend not to meddle with any Man's Property, nor to break down any Pales or Inclosures; but only to meddle with what was common and untilled, and to make it fruitful for the use of Man; that the time will suddenly be, that all Men shall willingly come in, and give up their Lands and Estates, and submit to this Community.

And for those that will come in and work, they should have Meat, Drink, and Clothes, which is all that is necessary to the Life of Man, and that for Money there was not any need of it, nor of Clothes more than to cover Nakedness.

That they will not defend themselves by Arms, but will submit unto Authority, and wait till the promised Opportunity be offered, which they conceive to be at hand. And that as their Forefathers lived in Tents, so it would be suitable to their Condition now to live in the same, with more to the like Effect.

While they were before the General they stood with their Hats on, and being demanded the Reason thereof, they said, because he was but their fellow Creature; being asked the meaning of that Place, Give honour to whom honour is due, they said, their Mouths should be stopped that gave them that Offence.

I have set down this the more largely, because it was the beginning of the Appearance of this Opinion; and that we might the better understand and avoid these weak Persuasions.

[THE STORMING OF DROGHEDA \(OR TREDAH\) \(1649\).](#)

Source.—Carlyle, *Letter IV.: To the Speaker*, September 17, 1649.

... Upon Tuesday the 10th of this instant, about five o'clock in the evening, we began the storm; and after some hot dispute we entered, about seven or eight hundred men; the enemy disputing it very stiffly with us. And indeed, through the advantages of the place, and the courage God was pleased to give the defenders, our men were forced to retreat quite out of the breach, not without some considerable loss; Colonel Castle being there shot in the head, whereof he presently died; and divers other officers and men doing their duty killed and wounded. There was a "Tenalia"^[2] to flank the south wall of the Town, between Duleek Gate and the corner Tower before mentioned;—which our men entered, wherein they found some forty or fifty of the Enemy, which they put to the sword. And this they held: but it being without the Wall, and the sally-port through the Wall into that Tenalia being choked up with some of the Enemy which were killed in it, it proved of no use for an entrance into the Town that way.

Although our men that stormed the breaches were forced to recoil, as is before expressed; yet, being encouraged to recover their loss, they made a second attempt: wherein God was pleased so to animate them that they got ground of the Enemy, and by the goodness of God, forced him to quit his entrenchments. And after a very hot dispute, the Enemy having both horse and foot, and we only foot, within the Wall,—they gave ground, and our men became masters both of their entrenchments and of the Church; which indeed, although they made our entrance the more difficult, yet they proved of excellent use to us; so that the Enemy could not now annoy us with their horse, but thereby we had advantage to make good the ground, that so we might let in our own horse; which accordingly was done, though with much difficulty.

Divers of the Enemy retreated into the Mill-Mount: a place very strong and of difficult access; being exceedingly high, having a good graft, and strongly palisadoed. The Governor, Sir Arthur Ashton, and divers considerable Officers being there, our men getting up to them, were ordered by me to put them all to the sword. And indeed, being in the heat of action, I forbade them to spare any that were in arms in the Town: and, I think, that

night they put to the sword about 2,000 men;—divers of the officers and soldiers being fled over the Bridge into the other part of the Town, where about 100 of them possessed St. Peter's Church-steeple, some the west Gate, and others a strong Round Tower next the Gate called St. Sunday's. These being summoned to yield to mercy, refused. Whereupon I ordered the steeple of St. Peter's Church to be fired, when one of them was heard to say in the midst of the flames: "God damn me, God confound me; I burn, I burn."

The next day, the other two Towers were summoned; in one of which was about six or seven score; but they refused to yield themselves: and we knowing that hunger must compel them, set only good guards to secure them from running away until their stomachs were come down. From one of the said Towers, notwithstanding their condition, they killed and wounded some of our men. When they submitted, their officers were knocked on the head; and every tenth man of the soldiers killed; and the rest shipped for the Barbadoes. The soldiers in the other Tower were all spared, as to their lives only; and shipped likewise for the Barbadoes.

I am persuaded that this is a righteous judgment of God upon these barbarous wretches, who have imbrued their hands in so much innocent blood; and that it will tend to prevent the effusion of blood for the future. Which are the satisfactory grounds to such actions, which otherwise cannot but work remorse and regret. The officers and soldiers of this Garrison were the flower of their army. And their great expectation was, that our attempting this place would put fair to ruin us; they being confident of the resolution of their men, and the advantage of the place. If we had divided our force into two quarters to have besieged the North Town and the South Town, we could not have had such a correspondency between the two parts of our Army, but that they might have chosen to have brought their Army, and have fought with which part of ours they pleased,—and at the same time have made a sally with 2,000 men upon us, and have left their walls manned; they having in the Town the number hereafter specified, but some say near 4,000....

And now give me leave to say how it comes to pass that this work is wrought. It was set upon some of our hearts, that a great thing should be done, not by power or might, but by the Spirit of God. And is it not so, clearly? That which caused your men to storm so courageously, it was the

Spirit of God, who gave your men courage, and took it away again; and gave the Enemy courage, and took it away again; and gave your men courage again, and therewith this happy success. And therefore it is good that God alone have all the glory.

FOOTNOTE:

[\[2\]](#) "Tenalia," a kind of advanced defensive work, which takes its name from its resemblance, real or imaginary, to the lips of a pair of pincers (Carlyle).

THE NAVIGATION ACT (1651).

(EXCERPT.)

Source.—*Acts and Ordinances of the Interregnum*. Vol. ii., p. 559.

For the Increase of the Shipping and the Encouragement of the Navigation of this Nation, which under the good Providence and Protection of God, is so great a means of the Welfare and Safety of this Commonwealth; Be it Enacted by this present Parliament, and the Authority thereof, That from and after the First day of December, One thousand six hundred fifty and one, and from thence forwards, no Goods or Commodities whatsoever, of the Growth, Production or Manufacture of Asia, Africa or America, or of any part thereof; or of any Islands belonging to them, or any of them, or which are described or laid down in the usual Maps or Cards of those places, as well of the English Plantations as others, shall be Imported or brought into this Commonwealth of England, or into Ireland, or any other Lands, Islands, Plantations or Territories to this Commonwealth belonging, or in their Possession, in any other Ship or Ships, Vessel or Vessels whatsoever, but onely in such as do truly and without fraud belong onely to the People of this Commonwealth, or the Plantations thereof, as the Proprietors or right Owners thereof; and whereof the Master and Mariners are also for the most part of them, of the People of this Commonwealth, under the penalty of the forfeiture and loss of all the Goods that shall be Imported contrary to this Act; as also of the Ship (with all her Tackle, Guns and Apparel) in which the said Goods or Commodities shall be so brought in and Imported; the one moyety to the use of the Commonwealth, and the other moyety to the use and behoof of any person or persons who shall seize the said Goods or Commodities, and shall prosecute the same in any Court of Record within this Commonwealth.

And it is further Enacted by the Authority aforesaid, That no Goods or Commodities of the Growth, Production or Manufacture of Europe, or of any part thereof, shall after the First day of December, One thousand six hundred fifty and one, be imported or brought into this Commonwealth of England, or into Ireland, or any other Lands, Islands, Plantations or Territories to this Commonwealth belonging, or in their possession, in any Ship or Ships, Vessel or Vessels whatsoever, but in such as do truly and without fraud belong onely to the people of this Commonwealth, as the true

Owners and Proprietors thereof, and in no other, except onely such Foreign Ships and Vessels as do truly and properly belong to the people of that Countrey or Place, of which the said Goods are the Growth, Production or Manufactures; or to such Ports where the said Goods can onely be, or most usually are first shipped for Transportation; And that under the same penalty of forfeiture and loss expressed in the former Branch of this Act, the said Forfeitures to be recovered and employed as is therein expressed.

And it is further Enacted by the Authority aforesaid, That no Goods or Commodities that are of Foreign Growth, Production or Manufacture, and which are to be brought into this Commonwealth, in Shipping belonging to the People thereof, shall be by them Shipped or brought from any other place or places, Countrey or Countreys, but onely from those of their said Growth, Production or Manufacture; or from those Ports where the said Goods and Commodities can onely, or are, or usually have been first shipped for Transportation; and from none other Places or Countreys, under the same penalty of forfeiture and loss expressed in the first Branch of this Act, the said Forfeitures to be recovered and employed as is therein expressed.

HOBBS ON LIBERTY (1651).

Source.—Hobbes, *Leviathan*, 1651. P. 108.

But as men, for the attaining of peace, and conservation of themselves thereby, have made an Artificial Man, which we call a Common-wealth; so also have they made Artificial Chains, called civil laws, which they themselves, by mutual covenants, have fastened at one end, to the lips of that man, or assembly, to whom they have given the sovereign power; and at the other end to their own ears. These Bonds, in their own nature but weak, may neverthelesse be made to hold, by the danger, though not by the difficulty, of breaking them.

In relation to these Bonds only it is, that I am to speak now, of the *Liberty* of *Subjects*. For seeing there is no Common-wealth in the world, wherein there be rules enough set down, for the regulating of all the actions, and words of men, (as being a thing impossible:) it followeth necessarily, that in all kinds of actions, by the laws prætermitted, men have the Liberty of doing what their own reasons shall suggest, for the most profitable to themselves. For if we take Liberty in the proper sense, for corporal Liberty; that is to say, freedom from chains and prison, it were very absurd for men to clamor as they do, for the Liberty they so manifestly enjoy. Again, if we take Liberty for an exemption from Laws, it is no less absurd for men to demand, as they do, that Liberty, by which all other men may be masters of their lives. And yet as absurd as it is, this is it they demand; not knowing that the laws are of no power to protect them, without a sword in the hands of a man, or men, to cause those laws to be put in execution. The Liberty of a Subject lieth therefore only in those things which, in regulating their actions, the Sovereign hath prætermitted: such as is the Liberty to buy, and sell, and otherwise contract with one another; to choose their own abode, their own diet, their own trade of life, and institute their children as they themselves think fit; and the like.

Neverthelesse we are not to understand, that by such Liberty, the Sovereign Power of life and death is either abolished or limited. For it has been already shewn, that nothing the Sovereign Representative can do to a Subject, on what pretence soever, can properly be called Injustice, or Injury; because every subject is author of every act the Sovereign doth; so that he

never wanteth Right to any thing, otherwise than as he himself is the Subject of God, and bound thereby to observe the laws of Nature. And therefore it may, and doth often happen in Common-wealths, that a Subject may be put to death by the command of the Sovereign Power; and yet neither do the other wrong: As when Jeptha caused his daughter to be sacrificed: In which, and the like cases, he that so dieth had Liberty to do the action, for which he is neverthelesse without injury put to death. And the same holdeth also in a Sovereign Prince, that putteth to death an innocent subject. For though the action be against the law of Nature, as being contrary to Equity, (as was the killing of Uriah by David;) yet it was not an injury to Uriah; but to God. Not to Uriah, because the right to do what he pleased was given him by Uriah himself. And yet to God, because David was God's Subject; and prohibited all iniquity by the law of Nature. Which distinction David himself, when he repented the fact, evidently confirmed, saying, *To Thee only have I sinned.*

A BATTLE WITH THE DUTCH (1652).

Source.—*An Exact and Perfect Relation of the Terrible and Bloody Fight between the English and the Dutch Fleets in the Downs on Wednesday, May 19, 1652.* Brit. Mus., E. 665.

To Mr. Richard Bostock of London, Merchant.

WORTHY SIR,

My service to you, wishing all happiness. On the 18th of May inst. the Hollanders' fleet, consisting of 42 sail of stout ships, all men of war, came by the Eastward, and lay by the lee of the South Foreland, and from thence sent two of their fleet into the Downs to Major Bourn, who was then Admiral (General Blake being absent). The Captains of those ships, coming aboard, desired leave of him to anchor their ships in the Downs. The Admiral asked them why they came into our seas with their flags up, so near our Navy. They answered they had orders not to strike their flags to any they should meet with; whereupon the Major answered them, that within two days' time they should know whether there was room enough for them to anchor in or not. Yet notwithstanding this the Hollanders anchored in Dover road, and rode there till the 19th. About two of the clock in the afternoon, Major Bourne came out of the Downs into Dover road with 10 sail, and Col. Blake from the rest with 13 sail more: the Dutch Fleet, seeing this, weighed anchor, and stood up to the coast of France with their flags up, near upon two hours, and then bore up to Gen. Blake, each ship having a man at the topmast head, as if they intended to have struck their flags.

When they came within shot of our Admiral, he made one shot at them for to strike, but they refused, still coming towards him, whereupon he made two shot more at them, and then the Hollanders gave him one shot, still making nearer to him; and coming up to him, saluted our Admiral with a whole volley of small shot and a broadside of gunshot, and Col. Blake returned him the like, and bearing up after him, they two charged three or four broadsides at each other. Thirteen of the Hollanders gave our Admiral each of them a broadside, before any of our ships came up to second him; then the *General of Folkestone* came up between the Hollanders and our Admiral, and gave them a breathing time, and in an hour's time the ship called the *Triumph* came up to them and fell up into the whole fleet.

About six of the clock at night the Dutch Admiral bore away, and Gen. Blake after him; but Van Tromp went better than our Admiral, insomuch that he could not come up with them, but followed them within shot till nine of the clock, in which time the Hollanders had so shattered our General's sails and rigging, that they had neither sheets, tacks, nor brace, and his foresail was all torn in pieces; by means whereof Van Tromp sailed away and all his fleet after him; only one of our Frigates boarded one of them who had 150 in her; whereof 50 were slain and the rest wounded and taken: we also shot another Dutch ship's mainmast overboard and took her, she having 37 guns in her, but finding six foot of water in her hold, we only took out the Captain and two more, and left her not able to swim, but sank shortly afterwards....

Our ships are all now (God be praised) safe in the Downs, and have brought in two Hollanders, one of them thought to be an Adviser. I was aboard our fleet in the Downs, and there came six Hollanders that were merchantmen within a league of our fleet, whereupon a Frigate of ours came up to the Admiral, and asked leave to fetch them in; but the Admiral answered that they were men about honest occasions, and he had no order from the Council of State to meddle with them, and so let them pass about their occasions.

While I was aboard the Admiral, there came a Dutch man-of-war, supposing it to be Van Tromp, but the *Speaker* Frigate quickly fetched him up, and brought him into our fleet.

There were 36 of the Hollanders ships that engaged with our fleet in the aforesaid fight, that ride about deep, every one of them being about 1,000 or 1,500 tons, most of them pitifully torn and battered, and many of them without either mast, sails, or flags, having lost the company of their Admiral.

Sir, your assured friend,
THOMAS WHITE.

DOVER,
May 22, 1652.

CROMWELL AND THE RUMP (1653).

Source.—Carlyle, *Cromwell's Letters and Speeches*, September 12, 1654.

I pressed the Parliament, as a member, to period themselves—once, and again, and again, and ten, nay twenty times over. I told them—for I knew it better than any one man in the Parliament could know it, because of my manner of life which led me everywhere up and down the nation, thereby giving me to see and know the temper and spirits of all men, and of the best of men,—that the nation loathed their sitting. I knew it. And, so far as I could discern, when they were dissolved, there was not so much as the barking of a dog, or any general or visible repining at it! You are not a few here present that can assert this as well as myself.

And that there was high cause for their dissolution, is most evident; not only in regard there was a just fear of that Parliament perpetuating themselves, but because it was their *design*. Had not their heels been trod upon by importunities from abroad, even to threats, I believe there never would have been thoughts of rising or of going out of that room, to the world's end. I myself was sounded, and by no mean persons tempted; and proposals were made to me to that very end: that the Parliament might be thus perpetuated; that the vacant places might be supplied by new elections;—and so continue from generation to generation.

THE INSTRUMENT OF GOVERNMENT (1653).

Source.—*Old Parliamentary History*. Vol. xx., p. 248.

THE GOVERNMENT OF THE COMMONWEALTH OF ENGLAND, SCOTLAND, AND IRELAND, AND THE DOMINIONS THEREUNTO BELONGING.

I. That the supreme legislative authority of the Commonwealth of England, Scotland, and Ireland, and the dominions thereunto belonging, shall be and reside in one person, and the people assembled in Parliament: the style of which person shall be the Lord Protector of the Commonwealth of England, Scotland, and Ireland.

II. That the exercise of the chief magistracy and the administration of the government over the said countries and dominions, and the people thereof, shall be in the Lord Protector, assisted with a council, the number whereof shall not exceed twenty-one, nor be less than thirteen.

IV. That the Lord Protector, the Parliament sitting, shall dispose and order the militia and forces, both by sea and land, for the peace and good of the three nations, by consent of Parliament; and that the Lord Protector, with the advice and consent of the major part of the council, shall dispose and order the militia for the ends aforesaid in the intervals of Parliament.

V. That the Lord Protector, by the advice aforesaid, shall direct in all things concerning the keeping and holding of a good correspondency with foreign kings, princes, and states; and also, with the consent of the major part of the council, have the power of war and peace.

VI. That the laws shall not be altered, suspended, abrogated, or repealed, nor any new law made, nor any tax, charge, or imposition laid upon the people, but by common consent in Parliament, save only as is expressed in the thirtieth article.

VII. That there shall be a Parliament summoned to meet at Westminster upon the third day of September, 1654, and that successively a Parliament shall be summoned once in every third year, to be accounted from the dissolution of the present Parliament.

VIII. That neither the Parliament to be next summoned, nor any successive Parliaments, shall, during the time of five months, to be accounted from the day of their first meeting, be adjourned, prorogued, or dissolved, without their own consent.

IX. That as well the next as all other successive Parliaments shall be summoned and elected in manner hereafter expressed; that is to say, the persons to be chosen within England, Wales, the Isles of Jersey, Guernsey, and the town of Berwick-upon-Tweed, to sit and serve in Parliament, shall be, and not exceed, the number of four hundred. The persons to be chosen within Scotland, to sit and serve in Parliament, shall be, and not exceed, the number of thirty; and the persons to be chosen to sit in Parliament for Ireland shall be, and not exceed, the number of thirty.

[Here follows a detailed schedule of redistribution.]

XIV. That all and every person and persons, who have aided, advised, assisted, or abetted in any war against the Parliament, since the first day of January, 1641 (unless they have been since in the service of the Parliament, and given signal testimony of their good affection thereunto), shall be disabled and incapable to be elected; or to give any vote in the election of any members to serve in the next Parliament, or in the three succeeding Triennial Parliaments.

XVII. That the persons who shall be elected to serve in Parliament, shall be such (and no other than such) as are persons of known integrity, fearing God, and of good conversation, and being of the age of twenty-one years.

XVIII. That all and every person and persons seised or possessed to his own use, of any estate, real or personal, to the value of £200, and not within the aforesaid exceptions, shall be capable to elect members to serve in Parliament for counties.

XX. That in case writs be not issued out, as is before expressed, but that there be a neglect therein, fifteen days after the time wherein the same ought to be issued out by the Chancellor, Keeper, or Commissioners of the Great Seal; that then the Parliament shall, as often as such failure shall

happen, assemble and be held at Westminster, in the usual place, at the times prefixed.

XXIV. That all Bills agreed unto by the Parliament, shall be presented to the Lord Protector for his consent; and in case he shall not give his consent thereto within twenty days after they shall be presented to him, or give satisfaction to the Parliament within the time limited, that then, upon declaration of the Parliament that the Lord Protector hath not consented nor given satisfaction, such Bills shall pass into and become laws, although he shall not give his consent thereunto; provided such Bills contain nothing in them contrary to the matters contained in these presents.

XXVII. That a constant yearly revenue shall be raised, settled, and established for maintaining of 10,000 horse and dragoons, and 20,000 foot, in England, Scotland and Ireland, for the defence and security thereof, and also for a convenient number of ships for guarding of the seas; besides £200,000 per annum for defraying the other necessary charges of administration of justice, and other expenses of the Government, which revenue shall be raised by the customs, and such other ways and means as shall be agreed upon by the Lord Protector and the Council, and shall not be taken away or diminished, nor the way agreed upon for raising the same altered, but by the consent of the Lord Protector and the Parliament.

XXXII. That the office of Lord Protector over these nations shall be elective and not hereditary; and upon the death of the Lord Protector, another fit person shall be forthwith elected to succeed him in the Government; which election shall be by the Council, who, immediately upon the death of the Lord Protector, shall assemble in the Chamber where they usually sit in Council; and, having given notice to all their members of the cause of their assembling, shall, being thirteen at least present, proceed to the election; and, before they depart, the said Chamber shall elect a fit person to succeed in the Government, and forthwith cause proclamation thereof to be made in all the three nations as shall be requisite; and the persons that they, or the major part of them, shall elect as aforesaid, shall be, and shall be taken to be, Lord Protector over these nations of England, Scotland, and Ireland, and the dominions thereto belonging. Provided that

none of the children of the late King, nor any of his line or family, be elected to be Lord Protector or other Chief Magistrate over these nations, or any the dominions thereto belonging. And until the aforesaid election be past, the Council shall take care of the Government, and administer in all things as fully as the Lord Protector, or the Lord Protector and Council are enabled to do.

XXXIII. That Oliver Cromwell, Captain-General of the forces of England, Scotland and Ireland, shall be, and is hereby declared to be, Lord Protector of the Commonwealth of England, Scotland and Ireland, and the dominions thereto belonging, for his life.

XXXVII. That such as profess faith in God by Jesus Christ (though differing in judgment from the doctrine, worship or discipline publicly held forth) shall not be restrained from, but shall be protected in, the profession of the faith and exercise of their religion; so as they abuse not this liberty to the civil injury of others and to the actual disturbance of the public peace on their parts: provided this liberty be not extended to Popery or Prelacy, nor to such as, under the profession of Christ, hold forth and practise licentiousness.

THE CHOICE OF A HUSBAND (SEPTEMBER, 1653).

Source.—*Letters of Dorothy Osborne to Sir William Temple*. British Museum, Add. MSS. 33,975. Letter 39.

There are a great many ingredients must go to the making me happy in a husband; first, as my Cousin F. says, our humours must agree; and to do that he must have that kind of breeding that I have had, and used that kind of company; that is, he must not be so much a country gentleman as to understand nothing but hawks and dogs, and be fonder of either than of his wife; nor of the next sort of them whose aim reaches no further than to be Justice of Peace, and once in his life High Sheriff, who reads no books but statutes, and studies nothing but how to make a speech interlarded with Latin that may amaze his disagreeing poor neighbours, and fright them rather than persuade them into quietness. He must not be a thing that began the world in a free school, was sent from thence to the University, and is at his furthest when he reaches the Inns of Court, has no acquaintance but those of his form in these places, speaks the French he has picked out of old laws, and admires nothing but the stories he has heard of the revels that were kept there before his time. He may not be a town gallant neither, that lives in a tavern and an ordinary, that cannot imagine how an hour should be spent without company unless it be in sleeping, that makes court to all the women he sees, thinks they believe him, and laughs and is laughed at equally. Nor a travelled Monsieur whose head is all feather inside and outside, that can talk of nothing but dances and duels, and has courage enough to wear slashes, when everybody else dies with cold to see him. He must not be a fool of no sort, nor peevish, nor ill-natured, nor proud, nor covetous, and to all this must be added that he must love me and I him as much as we are capable of loving. Without all this, his fortune, though never so great, would not satisfy me; and with it a very moderate one would keep me from ever repenting my disposal....

I have been thinking of sending you my picture till I could come myself; but a picture is but dull company, and that you need not; besides I cannot tell whether it be very like me or not, though 'tis the best I ever had drawn for me, and Mr. Lely will have it that he never took more pains to make a good one in his life, and that was it, I think, that spoiled it. He was condemned for making the first that he drew of me a little worse than I, and

in making this better he has made it as unlike as t' other. He is now, I think, at my Lord Paget's at Marlow, where I am promised he shall draw a picture of my Lady for me—she gives it me, she says, as the greatest testimony of her friendship to me, for by her own rule she is past the time of having pictures taken of her. After eighteen, she says, there is no face but decays apparently: I would fain have had her except such as had never been beauties, for my comfort, but she would not.

A PRESBYTERIAN VIEW OF THE TRIERS (1653).

Source.—Richard Baxter, *Reliquæ Baxterianæ*. Vol. i., p. 72.

One of the chief works which he [Cromwell] did was the purging of the Ministry; of which I shall say somewhat more. And here I suppose the reader to understand that the Synod of Westminster was dissolved with the Parliament; and therefore a society of ministers with some others were chosen by Cromwell to sit at Whitehall, under the name of Triers, who were mostly Independents, but some sober Presbyterians with them, and had power to try all that came for institution or induction, and without their approbation none were admitted. This assembly of Triers examined themselves all that were able to come up to London, but if any were unable, or were of doubtful qualification between worthy or unworthy, they used to refer them to some ministers in the country where they lived, and to approve them if *they* approved them.

And because this assembly of Triers is most heavily accused and reproached by some men, I shall speak the truth of them, and suppose my word shall be the rather taken, because most of them took me for one of their boldest adversaries as to their opinions, and because I was known to disown their power, insomuch that I refused to try any under them upon their reference, except a very few, whose importunity and necessity moved me (they being such as for their episcopal judgment, or some such cause, the Triers were like to have rejected). The truth is that, though their authority was null, and though some few over busy and over rigid Independents among them were too severe against all that were Arminians, and too particular in enquiring after evidences of Sanctification in those whom they examined, and somewhat too lax in their admission of unlearned and erroneous men that favoured Antinomianism or Anabaptism; yet to give them their due, they did abundance of good to the church. They saved many a congregation from ignorant ungodly drunken teachers; that sort of men that intended no more in the ministry than to say a sermon, as readers say their Common Prayers, and so patch up a few good words together to talk the people asleep with on Sunday; and all the rest of the week go with them to the alehouse and harden them in their sin. And that sort of Ministers that either preached against a holy life, or preached as men that never were acquainted with it; all those that used the ministry but as a

common trade to live by and were never likely to convert a soul, all these they usually rejected, and in their stead admitted of any that were able serious Preachers, and lived a godly life, of what tolerable opinion soever they were. So that though they were many of them somewhat partial for the Independents, Separatists, Fifth Monarchy men and Anabaptists, and against the Prelatists and Arminians, yet so great was the benefit above the hurt which they brought to the Church, that many thousands of souls blessed God for the faithful ministers whom they let in, and grieved when the Prelatists afterwards cast them out again.

CROMWELLIAN SAYINGS (1643-1658).

Source.—Carlyle, *Cromwell's Letters and Speeches*.

I. *To Sir William Spring and Maurice Barrow, Esq., Cambridge, September, 1643.*

I had rather have a plain russet coated Captain, that knows what he fights for, and loves what he knows, than that which you call a gentleman and is nothing else. I honour a gentleman that is so indeed!

II. *To the Speaker after Naseby, June 14, 1645.*

... Sir, this is none other but the hand of God; and to Him alone belongs the glory, wherein none are to share with Him. The General served you with all faithfulness and honour; and the best commendation I can give him is, that I dare say he attributes all to God and would rather perish than assume to himself. Which is an honest and a thriving way:—and yet as much for bravery may be given to him, in this action, as to a man. Honest men served you faithfully in this action. Sir, they are trusty; I beseech you in the name of God, not to discourage them. I wish this action may beget thankfulness and humility in all that are concerned in it. He that ventures his life for the liberty of his country, I wish he trust God for the liberty of his conscience, and you for the liberty he fights for.

III. *To the Speaker, September 14, 1645.*

For being united in forms, commonly called Uniformity, every Christian will for peace' sake study and do, as far as conscience will permit. And for brethren, in things of the mind we look for no compulsion, but that of light and reason. In other things, God hath put the sword into the Parliament's hands—for the terror of evil-doers and the praise of them that do well.

IV. *To the Lord Mayor of London, June 10, 1647.*

The sum of our desires as soldiers is no other than this; Satisfaction to our undoubted claims as soldiers; and reparation upon those who have, to the utmost, improved all opportunities and advantages, by false suggestions, misrepresentations and otherwise, for the destruction of this army with a perpetual blot of ignominy upon it.

V. *To Oliver St. John, September 1, 1648.*

Remember my love to my dear brother, H. Vane. I pray he make not too much, nor I too little, of outward dispensations:—God preserve us all, that we, in the simplicity of our spirits, may patiently attend upon them. Let us all be not careful what men will make of these actings. They, will they, nill they, shall fulfil the good pleasure of God; and we—shall serve our generations. Our rest we expect elsewhere: that will be durable. Care we not for to-morrow, nor for anything.

VI. *To Col. R. Hammond, November 25, 1648.*

My dear Friend, let us look into Providences; surely they mean somewhat. They hang so together: have been so constant, so clear, unclouded. Malice, sworn malice against God's people now called "Saints": to root out their name;—and yet they getting arms, and therein blessed with defence and more!

VII. *To Mr. Speaker, September 4, 1650.*

If there be any one that makes many poor to make a few rich, that suits not a Commonwealth.

VIII. *To Lord Wharton, September 4, 1650.*

I have known my folly do good, when affection^[3] has overcome my reason.

IX. *To the Little Parliament, 1653.*

"The hand of the Lord hath done this"—it is He who hath wrought all the salvations and deliverances we have received. For what end! To see and know and understand together, that he hath done and wrought all this for the good of the whole flock. Therefore I beseech you—but I think I need not,—have a care of the whole flock! Love the sheep, love the lambs; love all, tender all, cherish and countenance all, in all things that are good. And if the poorest Christian, the most mistaken Christian, shall desire to live peaceably and quietly under you,—I say if any shall desire but to live a life of godliness and honesty, let him be protected.

And indeed this hath been the way God dealt with us all along, to keep things from our eyes all along, so that we have seen nothing in all his dispensations long beforehand;—which is also a witness, in some measure, to our integrity.

X. SPEECH V. *September 12, 1654.*

Indeed that hath been one of the vanities of our contest. Every sect saith, "O, give me liberty!" But give it to him and to his power he will not yield it to anybody else....

XI. *To the First Protectorate Parliament, January 22, 1654-55.*

Is it ingenuous to ask liberty, and not to give it? What greater hypocrisy than for those who were oppressed by the bishops to become the greatest oppressors themselves so soon as their yoke was removed. I could wish that they who call for liberty now also had not too much of that spirit, if the power were in their hands!

As for profane persons, blasphemers, such as preach sedition; the contentious railers, evil speakers, who seek by evil words to corrupt good manners, persons of loose conversation—punishment from the Civil Magistrate ought to meet with these. Because, if they pretend conscience; yet walking disorderly and not according but contrary to the gospel and even to natural lights, they are judged of all. And their sins being open make them subjects of the magistrate's sword, who ought not to bear it in vain.—The discipline of the Army *was* such, that a man would not be suffered to remain there, of whom we could take notice that he was guilty of such practices as those....

... And if it be my "liberty" to walk abroad in the fields, or to take a journey, yet it is not my wisdom to do so when my house is on fire!

XII. *Speech to the Major-Generals.*

Why, truly, your great enemy is the Spaniard. He is a natural enemy. He is naturally so, he is naturally so throughout,—by reason of that great enmity that is in him against whatsoever is of God.

Well, your danger is as you have seen. And truly I am sorry it is so great. But I wish it to cause no despondency;—as truly, I think it will not: for we are Englishmen; that is one good fact.

To hang a man for six-and-eightpence, and I know not what; to hang for a trifle and acquit murder,—is in the ministration of the law through the ill-framing of it. I have known in my experience abominable murders committed. And to see men lose their lives for petty matters: this is a thing God will reckon for.

XIII. *To the Second Protectorate Parliament, January 23, 1657.*

Truly, I shall in a word or two congratulate you with good *you* are in possession of, and in some respect, I also with you. God hath bestowed upon you, and you are in possession of it,—Three Nations, and all that appertains to them. Which in either a geographical, or topical consideration, are Nations. In which also there are places of honour and consideration, not inferior to any in the known world,—without vanity it may be spoken. Truly God hath not made so much soil, furnished with so many blessings, in vain! But it is a goodly sight, if a man behold it *uno intuitu*. And therefore this is a possession of yours, worthy of congratulation.

This is furnished,—give me leave to say, for I believe it is true,—with the best People in the world, possessing so much soil. A People in civil rights,—in respect of their rights and privileges,—very ancient and honourable. And *in* this People, in the midst of this People, you have, what is still more precious, a *People* (I know every one will hear and acknowledge it) that are to God "as the apple of His eye,"—and He says so of them, be they many, or be they few! But they are many. A People of the blessing of God; a People under His safety and protection. A People calling upon the Name of the Lord; which the Heathen do not. A People knowing God; and a People (according to the ordinary expressions) fearing God. And you have of this no parallel; no, not in all the world! You have in the midst of you glorious things.

XIV. *April 13, 1657.*

Truly I have, as before God, often thought that I could not tell what my business was, nor what I was in the place I stood in, save comparing myself

to a good Constable set to keep the peace of the parish.

XV. SPEECH XI. *April 13, 1657.*

I had a very worthy friend then; and he was a very noble person, and I know his memory is very grateful to all,—Mr. John Hampden. At my first going out into this engagement, I saw our men were beaten at every hand. I did indeed; and desired him that he would make some additions to my Lord Essex's Army, of some new regiments; and I told him I would be serviceable to him in bringing such men in as I thought had a spirit that would do something in the work. This is very true that I tell you; God knows I lie not. "Your troops," said I, "are most of them old decayed serving-men, and tapsters, and such kind of fellows; and," said I, "their troops are gentlemen's sons, younger sons and persons of quality: do you think that the spirits of such base and mean fellows will ever be able to encounter gentlemen, that have honour and courage and resolution in them?" Truly I did represent to him in this manner conscientiously; and truly I did tell him: "You must get men of a spirit: and take it not ill what I say,—I know you will not,—of a spirit that is likely to go as far as gentlemen will go—or else you will be beaten still."

XVI. *To the Committee of Ninety-Nine, April 21, 1657.*

But surely the Laws need to be regulated! And I must needs say, I think it would be a sacrifice acceptable to God, upon many accounts. And I am persuaded that it is one of the things God looks for, and would have. I confess if any man should ask me, "Why, how would you have it done?" I confess I do not know how. But I think verily at the least, the delays in suits, and the excessiveness in fees, and the costliness of suits, and those various things which I do not know what names they bear—I hear talk of "Demurrers" and such-like things, which I scarce know—But I say certainly, the people are greatly suffering in this respect; they are so.

XVII. *To the Second Protectorate Parliament, February 4, 1658.*

I can say in the presence of God, in comparison with whom we are but like poor creeping ants upon the earth,—I would have been glad to have lived under my woodside, to have kept a flock of sheep—rather than undertake such a Government as this. But undertaking it by the Advice and

Petition of you, I did look that you who had offered it unto me should make it good.

FOOTNOTE:

[3] *I.e.*, passion.

[GEORGE FOX THE QUAKER \(1654\).](#)

Source.—*Journal of George Fox*. London, 1694. Vol. i., pp. 136-138.

After this I went into the country, and had several Meetings, and came to Swannington where the soldiers came again, but the Meeting was quiet, and the Lord's power was over all, and the soldiers did not meddle. Then I went to Leicester, and from Leicester to Whetstone. But before the meeting began, there came about seventeen troopers of Colonel Hacker's regiment, with his Marshal, and they took me up before the meeting, though Friends were beginning to gather together, for there were several Friends come out of several parts. I told the Marshal, "He might let all the Friends go, I would answer for them all;" whereupon he took me and let all the Friends go; only Alexander Parker went along with me. At night they had me before Col. Hacker and his Major, and Captains, a great company of them; and a great deal of discourse we had about the priests, and about meetings (for at this time there was a noise of a plot against O. Cromwell).... Then Col. Hacker asked me again "If I would go home and stay at home?" I told him "If I should promise him so, that would manifest that I was guilty of something, to go home and make my home a prison. And if I went to Meetings, they would say I broke their Order." Therefore I told them I should go to Meetings as the Lord should order me; and therefore could not submit to their requirings; but I said we were a peaceable people. "Well then," said Colonel Hacker, "I will send you to-morrow morning by six o'clock to my Lord Protector by Captain Drury, one of his life guard." That night I was kept a prisoner at the Marshalsea; and the next morning by the sixth hour I was ready, and delivered to Captain Drury. I desired he would let me speak with Col. Hacker before I went, and he had me to his bedside. Col. Hacker at me presently again "To go home and keep no more Meetings." I told him I could not submit to that.... "Then," said he, "you must go before the Protector." Whereupon I kneeled on his Bedside and besought the Lord to forgive him, for he was as Pilate, though he would wash his hands; and when the day of his misery and trial should come upon him, I bid him then remember what I had said to him.... Afterwards when this Col. Hacker was in prison in London, a day or two before he was executed, he was put in mind of what he had done against the innocent....

Now was I carried up a prisoner by Captain Drury aforesaid from Leicester.... So he brought me to London, and lodged me at the Mermaid over against the Mews at Charing Cross. And on the way as we travelled I was moved of the Lord to warn people at the inns and places where I came of the day of the Lord that was coming upon them. And William Dewsbury and Marmaduke Stor being in prison at Northampton, he let me go and visit them.

After Captain Drury had lodged me at the Mermaid, he left me there and went to give the protector an account of me. And when he came to me again, he told me the Protector did require that I should promise not to take up a carnal sword or weapon against him or the government as it then was, and that I should write it, in what words I saw good, and set my hand to it. I said little in reply to Captain Drury. But the next morning, I was moved of the Lord to write a paper "to the Protector by the name of Oliver Cromwell," wherein I did in the presence of God declare that I did deny the wearing and drawing of a carnal sword, or any other outward weapon against him or any man. And that I was sent of God to stand a witness against all violence and against the works of Darkness, to turn the people from Darkness to Light and to bring them from the occasion of war and fighting to the peaceable Gospel.... When I had written what the Lord had given me to write, I set my name to it and gave it to Captain Drury to give to O. Cromwell, which he did.

Then after some time Captain Drury brought me before the Protector himself at Whitehall. It was in a morning before he was dressed.... When I came in, I was moved to say "Peace be in this House," and I bid him keep in the fear of God that he might receive wisdom from him.... I spake much to him of Truth, and a great deal of Discourse I had with him about Religion; wherein he carried himself very moderately. But he said we quarrelled with the priests whom he called Ministers. I said we did not quarrel with them, but they quarrelled with me and my friends. "But," I said, "if we own the Prophets, Christ and the Apostles, we cannot hold up such teachers, prophets and shepherds, as the Prophets, Christ and the Apostles declared against...." As I spake, he would several times say it was very good, and it was truth. I told him that all Christendom (so-called) had the Scriptures, but they wanted the power and spirit that they had which gave forth the Scriptures.... Many more words I had with him; but people coming in, I

drew a little back. And as I was turning, he caught me by the hand and with tears in his eyes, said "Come again to my House, for if thou and I were but an hour of a day together, we should be nearer one to the other," adding, that he wished me no more ill than he did to his own soul. I told him; if he did, he wronged his own soul. And I bid him hearken to God's voice, ... and if he did not hear God's voice, his heart would be hardened. And he said: it was true. Then went I out. And when Captain Drury came out after me, he told me his Lord Protector said, I was at liberty, and might go whither I would. Then I was brought into a great Hall where the Protector's gentlemen were to dine, and I asked them what they did bring me thither for. They said it was by the Protector's order that I might dine with them. I bid them let the Protector know I would not eat a bit of his bread nor drink a sup of his drink. When he heard this he said: "Now I see there is a people risen and come up, that I cannot win either with gifts, honours, offices or places: but all other sects and people I can." But it was told him again, that we had forsook our own and were not like to look for such things from him.

Now I, being set at liberty, went up to the Inn again, where Captain Drury had at first lodged me. This Captain Drury, though he sometimes carried fairly, was an enemy to me and to truth and opposed it ... and would scoff at trembling and call us Quakers, as the Presbyterians and Independents had nicknamed us before. But afterwards he came on a time and told me, that as he was lying on his bed to rest himself in the daytime, a sudden trembling seized on him that his joints knocked together ... and he was so shaken that he had not strength enough to rise. But he felt the power of the Lord was upon him and he tumbled off his bed and cried to the Lord and said, he would never speak against the Quakers more, such as trembled at the word of God.

KILLING NO MURDER (1657).

(PREFACE.)

Source.—*Harleian Miscellany*. Vol. IV., p. 289.

To His Highness Oliver Cromwell.

MAY IT PLEASE YOUR HIGHNESS,

How I have spent some hours of the leisure your Highness has been pleased to give me, the following paper will give your Highness an account; how you will please to interpret it, I cannot tell; but I can with confidence say, my intention in it is to procure your Highness that justice nobody yet does you, and to let the people see, the longer they defer it, the greater injury they do both themselves and you. To your Highness justly belongs the honour of dying for the people; and it cannot choose but be an unspeakable consolation to you, in the last moments of your life, to consider with how much benefit to the world you are like to leave it. It is then only, my Lord, that the title you now usurp will be truly yours: you will then be indeed the Deliverer of your country, and free it from a bondage little inferior to that from which Moses delivered his. You will then be that true Reformer which you would now be thought; religion shall then be restored, liberty asserted, and parliaments have those privileges they have fought for. We shall then hope that other laws will have place besides those of the sword, and justice shall be otherwise defined than as the Will and Pleasure of the Strongest; and we shall then hope men will keep oaths again, and not have the necessity of being false and perfidious to preserve themselves and to be like their rulers. All this we hope from your Highness's happy expiration, who are the true father of your country: for while you live, we can call nothing ours, and it is from your death that we hope for our inheritances. Let this consideration arm and fortify your Highness's mind against the fear of death and the terrors of your evil conscience, that the good you will do by your death will somewhat balance the evils of your life. And if, in the black catalogue of high malefactors, few can be found that have lived more to the affliction and disturbance of mankind than your Highness hath done; yet your greatest enemies will not deny, but there are likewise as few that have expired more to the universal benefit of mankind, than your Highness is like to do. To hasten this great

good is the chief end of my writing this paper, and if it have the effects I hope it will, your Highness will be quickly out of reach of men's malice and your enemies will only be able to wound you in your memory, which strokes you will not feel. That your Highness may speedily be in this security, is the universal wish of your grateful country; this is the desire and prayer of the good and of the bad, and, it may be, is the only thing wherein all sects and factions do agree in their devotions, and is our only Common Prayer. But amongst all that put in their requests and supplications for your Highness's speedy deliverance from all earthly troubles, none is more assiduous, nor more fervent than he that (with the rest of this nation) hath the honour to be, may it please your Highness,

Your Highness's present slave and vassal,
W. A.

CHARACTER OF CROMWELL.

Source.—*Sir Philip Warwick's Memoirs*, 1701. P. 247.

I have no mind to give an ill character of Cromwell; for in his conversation towards me he was ever friendly; tho' at the latter end of the day finding me ever incorrigible, and having some inducements to suspect me a tamperer, he was sufficiently rigid. The first time that ever I took notice of him, was in the very beginning of the Parliament held in November, 1640, when I vainly thought myself a courtly young Gentleman: (for we Courtiers valued our selves much upon our good clothes). I came one morning into the House well clad, and perceived a Gentleman speaking (whom I knew not) very ordinarily apparelled; for it was a plain cloth suit, which seemed to have been made by an ill country-tailor; his linen was plain, and not very clean; and I remember a speck or two of blood upon his little band, which was not much larger than his collar; his hat was without a hat-band: his stature was of a good size, his sword stuck close to his side, his countenance swoln and reddish, his voice sharp and untunable, and his eloquence full of fervour; for the subject matter would not bear much of reason; it being in behalf of a servant of Mr. Prynne's, who had dispersed libells against the Queen for her dancing and such innocent and courtly sports; and he aggravated the imprisonment of this man by the Council Table unto that height, that one would have believed the very Government itself had been in great danger by it. I sincerely profess it lessened much my reverence unto that great council; for he was very much hearkened unto. And yet I lived to see this very Gentleman, whom out of no ill will to him I thus describe,—by multiplied good successes, and by real (but usurped) power, (having had a better tailor, and more converse among good company)—in my own eye, when for six weeks together I was a prisoner in his Serjeant's hands, and daily waited at Whitehall, appear of a great and majestic deportment and comely presence. Of him therefore I will say no more, but that verily I believe, he was extraordinarily designed for those extraordinary things, which one while most wickedly and facinorously he acted, and at another as successfully and greatly performed.

TRANSCRIBER'S NOTE

Obvious typographical errors and punctuation errors have been corrected after careful comparison with other occurrences within the text and consultation of external sources.

Two of the internal references given in "NOTE TO THIS VOLUME" on [page vii](#) are incorrect. "p. 82" has been changed to "p. 80", and "pp. 83-86" to "pp. 81-84".

Except for those changes noted below, all misspellings in the text, and inconsistent or archaic usage, have been retained.

[Pg viii](#), 'Reliquiæ Baxterianæ' replaced by 'Reliquæ Baxterianæ'.

[Pg 23](#), 'doth esfsoones' replaced by 'doth eftsoones'.

[Pg 37](#), 'laws and statues' replaced by 'laws and statutes'.

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